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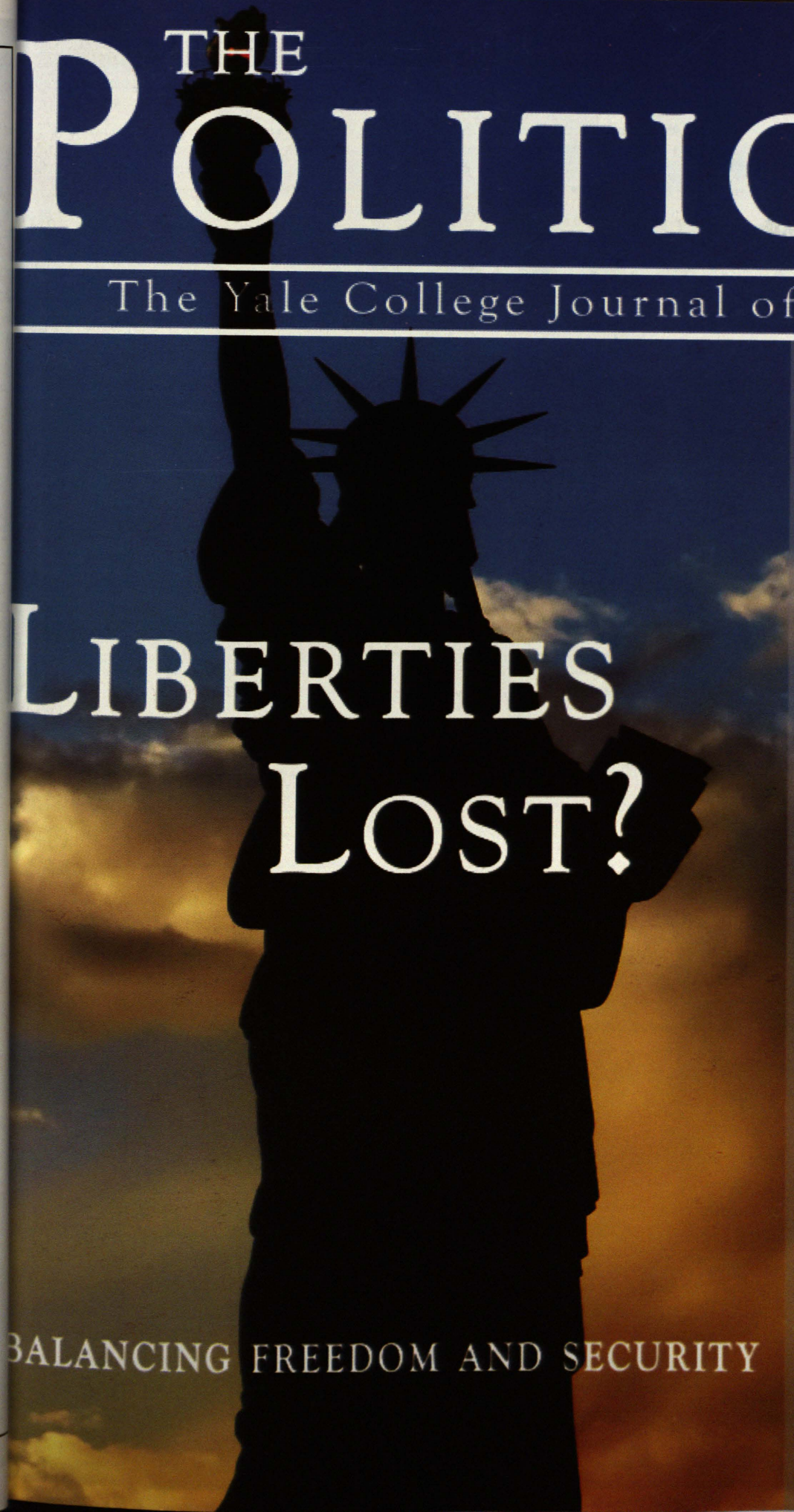
Summer 2006
Volume VII
Issue II

THE POLITIC

The Yale College Journal of Politics



LIBERTIES LOST?

BALANCING FREEDOM AND SECURITY

Featuring

John Sununu
U.S. SENATOR

Tom Daschle
FORMER U.S. SENATOR

Roger Pilon
CATO INSTITUTE

Stuart Taylor
BROOKINGS INSTITUTION

Also With

Newt Gingrich
FORMER HOUSE SPEAKER

Michael Bloomberg
MAYOR, NEW YORK CITY

Rosa DeLauro
U.S. REPRESENTATIVE

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THE POLITIC

The Yale College Journal of Politics

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P.O. Box 201452
New Haven, CT 06520-1452

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FROM THE EDITOR
SUMMER 2006

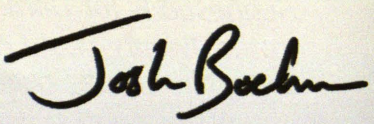
Dear Reader,

Throughout its history, America has managed the inherent tension between civil freedoms and imperatives of national defense. Over the past five years, however – having embarked on military campaigns in Afghanistan and Iraq that will continue for the foreseeable future – this tension has again emerged into sharp relief. Asserting that our enemies are willing to use any imaginable means against us, the executive branch feels that it must have a robust set of powers to mount an effective response.

But how much latitude should we allow? In our feature section, THE POLITIC explores this question in depth. Senator John Sununu, a key player in the Patriot Act debate, explains the implications of the newly reapproved legislation. Former Senator Tom Daschle lays out a critique of the Bush administration, arguing that America is losing its luster as a paradigm of liberal democracy. Two leading scholars at the Cato Institute and Brookings Insitution, Roger Pilon and Stuart Taylor, contribute their points of view on presidential war power and its implications on civil liberties. And Anant Raut, a 1996 Yale graduate, gives a vivid account of his work as a pro-bono counsel for Guantánamo Bay detainees.

Among other highlights, Rosa DeLauro – New Haven's representative to Congress – provides a thoughtful assessment of America's current energy policy. Former Speaker of the House Newt Gingrich outlines his concerns about America's economic competitiveness, and New York Mayor Michael Bloomberg talks about the rewards and challenges of running a major American city.

On behalf of our staff and editorial board, I am proud to conclude another fine year at THE POLITIC. Thanks again to our readers and sponsors for your generous support, and best wishes for an enjoyable and productive summer.



Josh Boehm
Editor-in-Chief

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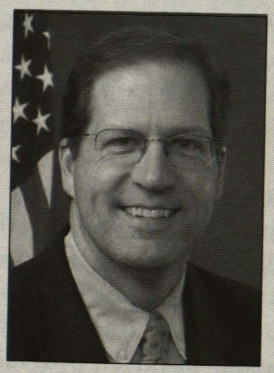
Broker of Compromise

An Interview with Senator John Sununu

Conducted by Maggie Goodlander



A former three-term U.S. Representative, **John Sununu** has served as a U.S. Senator from New Hampshire since 2003, when he was the youngest member of that body. He recently helped craft a compromise on the Patriot Act that ended the political deadlock over the controversial legislation.

In the post-September 11 world, what is at stake in the fight to protect civil liberties?

The question of protecting civil liberties is essential in times of peace and in times of war. The goal of the Framers in developing the Constitution was to clearly describe the kind of government they want, but also to be clear about the ways in which the rights of individuals should be protected from the power of government.

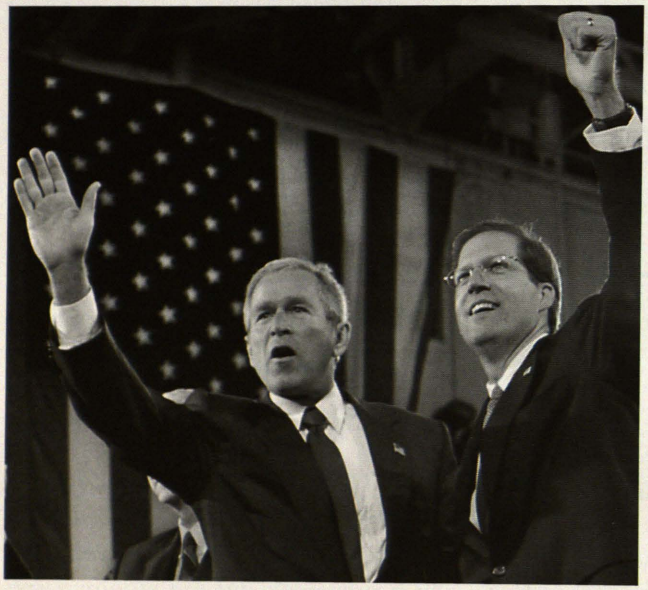
In a post-September 11 world those same sets of challenges remain. We give powers to the federal government to deal with the threat of terrorism. We give tools to law enforcement to conduct terrorism investigation. But we also need to make sure that there are provisions in place to give individuals access to the courts, protect their basic rights, and ensure that access to warrants, wiretapping, and other types of searches are conducted in accordance with the law.

Many congratulations on the passage of the recent amendments to the Patriot Act. You described the two-year fight to provide civil liberties as a bipartisan effort where a common ground was reached. What were your priorities in the fight to protect civil liberties?

We had a number of goals including ensuring that the most contentious provisions of the Patriot Act had a sunset agreement that would require them to be renewed, and we succeeded in getting a two year sunset for the 215 subpoenas and roving wiretaps. We wanted to make sure that both the 215 orders and national security letter subpoenas received judicial review, or could be reviewed in a court of law, and that the gag law that accompanies those subpoenas could be reviewed before a judge. We were very successful in getting those provisions in place to make sure that we had more clarity in the roving wiretap provisions so that either the target of the wiretap or the location of the tap had to be disclosed. We were successful there. We wanted more clarity in the delayed notification of search warrants which previously did not require a specific time after which the target of a delayed search warrant target had to be identified. We were successful there as well. So there were a whole range of concerns that we raised, and in most – but not all – of the areas we were able to get changes to the original Patriot Act.

As one of only four Senators to dispute the Patriot Act, you confronted the Republican majority in Congress. How did you rally support in spite of the odds?

The way to get support is to argue your case, and argue it clearly. I worked with colleagues on a one-to-one basis. I think there were a number of Republicans that felt uncomfortable slowing down the Patriot Act renewal because it was an initiative supported by the president, even though they recognized the initiatives we were trying to make made a great deal of sense. And I'm sure there were Republicans and Democrats in difficult re-election fights that would have voted with us if they didn't have the worries of campaigning on their minds, especially with the threat of harsh rhetoric from their opponents looking to take more time on the Patriot Act. I think at the end of the day, we had ninety votes to negotiate the changes we wanted to make and I think that's a pretty positive indication that, even though we only had 47 or 48 votes to delay the bill, we had many more people



Agree to Disagree: President Bush campaigns with then-Rep. Sununu in 2002. Although a Republican and the son of the Chief of Staff to George H.W. Bush, Sen. Sununu occasionally finds himself at odds with the Bush administration, including over the Patriot Act. (Tim Sloan/ Getty Images)

who were supportive of our effort.

In the past, you have echoed the words of Ben Franklin: "Those who would give up essential Liberty, to purchase a little temporary Safety deserve neither Liberty or Safety." Does the Patriot Act as it stands now compromise the liberty of Americans to ensure safety in a way that renders us undeserving of both safety and liberty?

No, I don't think so. Ben Franklin's admonition is one that we should take seriously. I think it was also Franklin who popularized the often used phrase that "The perfect shouldn't be the enemy of the good." We were able to make a significant amount of progress in a significant number of areas in renewing the Patriot Act. There were a few where we were not as successful as we had hoped, but the fact that we forced a reconsideration and we negotiated additional changes puts everyone on notice that there's a bi-partisan coalition that is going to come together in future debates on civil liberties. That, I think, is very much in keeping with the spirit of Franklin's warning.

What challenges do you face in your efforts to achieve a comfortable balance between protecting our nation and protecting the basic rights of Americans?

The first challenge is probably that it is complex work in a complicated area of the law. Many times legislators would rather do what's easy and avoid having to look carefully at areas of the law that aren't written clearly. It's much easier to put an earmark in the Appropriations Bill and then go home and campaign that you spent money that will return to your Congressional district or your state. So that's certainly an obstacle: getting legislators interested in and focused on an issue that is relatively complex. The second obstacle is the politics. Everyone's afraid of being criticized back home for not doing enough to fight terrorism. Because they don't really understand all of the underlying issues and the underlying law dealing with civil liberties, they're not prepared to respond to those charges, even if they're baseless. So there's a political challenge and a substantive challenge, but in this case we were able to overcome them.

One of the three main areas of your concern with the Patriot Act surrounds protecting libraries that are "functioning in their traditional roles." It appears unclear whether the revisions to the Act have provided any real protection to libraries since the FBI has repeatedly asserted that all libraries providing Internet access, specifically (as stated under Section 2510(15) of title 18) "electronic communication service" are subject to National Security Letters. Could you please comment on the confusion that has arisen in light of this particular amendment?

The confusion begins with definitions in the law that were written over twenty years ago well before we had internet access available to consumers as we do today. If you read the amendment itself it's actually very clear: libraries acting in their traditional roles –including providing internet access – are not subject to National Security Letters. I think it was important to provide that clarification and provide protection from any entity that is acting as an ISP, that is, a provider of internet service to multiple subscribers like Verizon or Comcast or Yahoo, which is a different entity altogether. But a library isn't subject to a National Security Letter simply because it allows internet access from a terminal in the facility.

The Bush administration has seen a vast increase in National Security Letters; in fact 30,000 NSLs have been issued without protest. What is at stake for American civil liberties and how does the revised Patriot Act address these concerns?

I think what's most important is that Congress is provided with a clear description of the program and its operation, that Congress have the statutory power to conduct oversight and get access to the results and the products that come out of the program. The Intelligence Committee is the appropriate form for that oversight, and In-

telligence Committee members are currently negotiating or developing legislation that would allow the oversight to take place.

Senator Feingold, with whom you worked closely while amending the Patriot Act, has openly moved to censure President Bush's actions. He said that "We, as a Congress, have to stand up to a president who acts like the Bill of Rights and the Constitution were repealed on Sept 11, [2001]." How do you respond to the Senator's attack on the President?

I worked with Russ on the Patriot Act and enjoyed working with him very much. He's a very principled man, and was very helpful in developing ideas and legislative changes that were ultimately signed into law, even though he did not support the final package. I don't think a censure is warranted. I believe if his resolution were brought to a floor vote in the Senate it would lose in a resounding fashion. I don't think that more than four or five Democrats would support it because there is no basis for this kind of resolution. I do think there are legitimate questions about the best way to conduct oversight of the surveillance program which I spoke about earlier, but the administration, I think, has shown a willingness to work out that process. The Congress was briefed, albeit in a very limited fashion, on the program from its earliest days and I think that's an indication that the administration was not attempting to circumvent the law, even if the clarity in the law is lacking. They have shown a willingness to share information with Congress, and I think we need to hold them to that standard and improve the oversight. But a future resolution is a political exercise, and it distracts us from the real challenge of getting good legislation in place to protect civil liberties and ensure that we continue to succeed in investigating and capturing terrorists.

Could you comment on the Use of Force resolution as justification for President Bush's actions in cases of domestic surveillance? Should the president's constitutional authority override the 1978 FISA statute?

The Use of Force Resolution was interpreted by most member of Congress to deal with issues outside the country and around the world. FISA clearly provides for wiretapping in domestic cases. The administration has argued that these communications involve individuals outside the United States, and that has historically been an area where presidents exercise their prerogatives. The exchange of communications could be mail, telegrams; it could be wireless communications or internet communications going to and coming from the United States. That's an area where I think we need more clarity, and better oversight which is precisely what the Intelligence Committee is trying to establish today.

How effective do you think Bush administration policies have been the War on Terror? Do you believe that the Patriot Act or wiretapping programs have contributed to any successes the administration may have achieved?

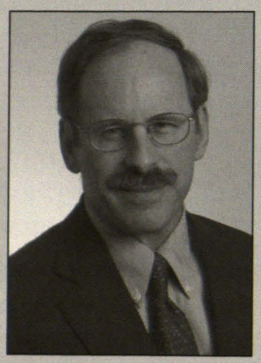
We haven't had an attack since September 11, 2001, in the United States, and I think that speaks volumes about the effort of law enforcement not only at federal level, but also at the state and local level. We've seen major advances in identifying potential cells within the United States, identifying training areas and leadership around the world which have included some very high-profile arrests. The most important aspect of the Patriot Act is one that isn't especially controversial. It is one that allows the FBI and the CIA to share information on intelligence gathered overseas in the case of the CIA, and intelligence gathered domestically in the case of the FBI. Where terrorism is concerned, that information needs to be shared quickly and effectively. I think that has helped investigators significantly. I don't know that the wiretap provisions in particular have been as important, but I'm sure that those are tools that have been used reasonably effectively. Other aspects of the Patriot Act have been helpful to law enforcement as well, but I think the most critical area has been in sharing information and intelligence among different elements of the federal government.

Members of Congress are afraid of being criticized back home for not doing enough to fight terrorism. Because they don't understand all of the underlying issues dealing with civil liberties, they're not prepared to respond to those charges even if they're baseless.

Endless War, Eroding Liberties

Keeping the President in Bounds

By Stuart Taylor, Jr.



Stuart Taylor, Jr. is a Nonresident Senior Fellow at the Brookings Institution and an expert in constitutional law and legal affairs. He is both a contributing editor to *Newsweek* and a columnist for the *National Journal*.

The Bush administration's claims of sweeping presidential power to override acts of Congress and international law in the name of warring against terrorism have provoked increasing resistance in recent months. It's about time. The 9/11 attacks jolted Americans into an awareness that suicidal infiltrators were bent on murdering us by the thousands – even by the millions, if they could get doomsday weapons. This has naturally provoked a battle over how to recalibrate the liberty-security balance that had been struck during less terrifying times.

Initially, the USA-Patriot Act generated the loudest debates between officials bent on stopping terrorists from killing us and civil libertarians more concerned about stopping the government from spying on us. In fact, the Patriot Act's 156 sections were mostly reasonable, incremental, overdue enhancements of long-established investigative and surveillance powers. But for years the scare rhetoric about that law – from conservative libertarians as well as liberals – obscured a far more consequential development. It began almost immediately after the 9/11 attacks and continues today.

This has been the succession of highly aggressive Bush administration claims that the commander in chief has near-dictatorial powers to wage war against terrorists, at home as well as abroad. These claims have already given rise to two major Supreme Court rulings and a pending challenge that the justices are expected to decide in June. There is nothing new about wartime presidents aggrandizing their powers. But this administration – without consulting Congress, and in defiance of criminal laws and treaty obligations –has made more sweeping claims than any since Lincoln's.

Lincoln had his reasons. In 1861, when a Confederate army threatened Washington with help from Confederate sympathizers in Baltimore, he suspended the ancient writ of *habeas corpus* to allow detention of suspected enemy agents. He also defied a judicial ruling that this was unconstitutional. As the war dragged on, his generals censored and confiscated newspapers, imprisoned editors and imposed martial law. Lincoln unilaterally freed the slaves. Congress, meanwhile, ratified only some of his actions. However, Lincoln and most other presidents have worked with Congress when feasible; George W. Bush prefers to act unilaterally. Lincoln won the Civil War in four years and FDR won World War II faster than that; Bush has been warring for over four-and-one-half years since 9/11. When previous wars ended, we returned to normality; while Bush has so far been cautious in using the virtually unlimited powers he claims, this war has no end in sight.

Just two weeks after 9/11, a little-known Justice Department official named John Yoo penned a memo for the White House with a conclusion that could be called the Bush Doctrine on war powers. Congress, Yoo declared, may not "place any limits on the President's determinations as to any terrorist threat, the amount of military force to be used in response, or the method, timing, and nature of the response. These decisions, under our Constitution, are for the President alone to make." Since then, with Vice President Cheney and his staff pushing relentlessly for an all-powerful presidency, administration lawyers have argued in formal memos and briefs that President Bush has the unilateral powers to:

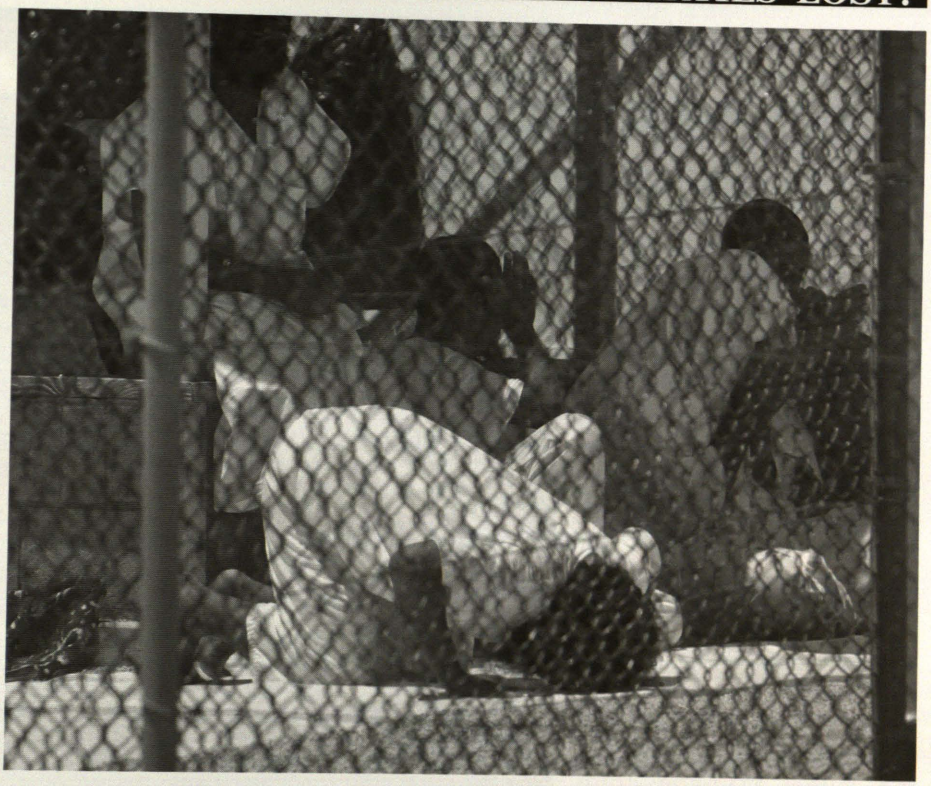
- Launch a major, preemptive invasion without congressional approval;
- Order the indefinite detention of any

and all people he alleges to be "enemy combatants" (including Americans seized on American soil) without due process or access to lawyers or courts;

• Authorize indiscriminate torture to make such detainees talk, in defiance of international treaty obligations and a 1994 law making torture a crime;

• Prosecute non-American detainees in "military commissions" created by this administration, with penalties including death, fewer protections than ordinary military courts, and no appeals outside the chain of command;

• Order warrantless eavesdropping on communications to or from the U.S. if a suspected al-Qaeda agent is on either end, in defiance (many experts say) of criminal provisions of the Foreign Intelligence Surveillance Act. President Bush says that FISA is outdated, that the program is a vital early warning system, that Congress has implicitly authorized it, and that his own inherent powers would trump any contrary act of Congress.



Fenced-in Faith: In this April 2006 photograph, an unidentified detainee prays inside the compound of Camp Delta detention center, at the Guantanamo Bay Naval Base in Cuba. BRENNAN LINSLEY/AFP/Getty Images

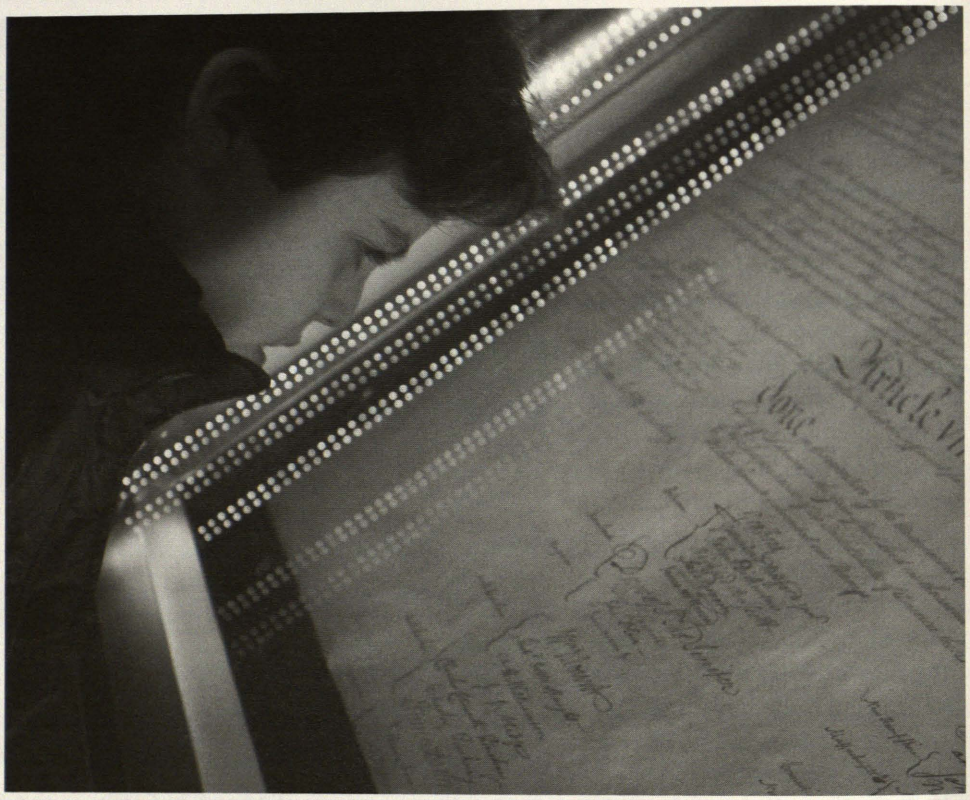
Some of President Bush's claims have been challenged, with mixed results. Senator Russell Feingold has waged a lonely campaign to censure the president for violating FISA. The more probable congressional response will be to impose limited oversight. The Supreme Court curbed President Bush's powers to detain suspected enemies in two June 2004 decisions, requiring access to counsel and hearings for American detainees and access to federal courts for foreign detainees at Guantanamo Bay. In the pending case, a challenge to Bush's military commissions, five justices' comments during the March 28 oral argument suggest that they may well rein Bush in again. Congress, which has mostly slumbered through Bush's relentless accretion of power, briefly roused itself late last year at the insistence of Senator John McCain. The "McCain Amendment" to a recent Pentagon funding bill limits brutal interrogation methods. Also in late 2003 and 2004, a handful of Bush-appointed Justice Department lawyers balked at the executive-supremacy absolutism of the White House. Assistant Attorney General Jack Goldsmith, Deputy Attorney General James Comey, and others put their jobs on the line by repudiating earlier Justice Department opinion letters on executive power, torture and other matters.

However, the White House's retreats have been tactical and will be temporary unless pressure from Congress as well as the courts intensifies. Adopting the narrowest possible interpretation of the decision giving Guantanamo detainees access to federal courts, the administration still claims that they have no rights for courts to enforce. In signing the McCain Amendment into law, President Bush vowed to construe it "in a manner consistent with the constitutional authority of the president . . . [and] consis-

WHEN PREVIOUS WARS ENDED, WE RETURNED TO NORMALITY; WHILE BUSH HAS SO FAR BEEN CAUTIOUS IN USING THE VIRTUALLY UNLIMITED POWERS HE CLAIMS, THIS WAR HAS NO END IN SIGHT."

tent with the constitutional limitations on judicial power." Translation: I will comply with this law when I feel like it. Meanwhile, Goldsmith and his allies have left the government. The most powerful executive supremacists remain.

Contrary to the Bush Doctrine, the Framers of the Constitution intended to make Congress – not the commander in chief – preeminent in matters of war. The Constitution gives Congress the powers to "declare war"; to "make rules for the government and regulation of the land and naval forces"; to "define and punish . . . offenses against the law of nations"; and more. George Washington, James Madison, John Marshall, and most other founders (excepting Alexander Hamilton) similarly stressed the primacy of Congress.



A Closer Look: A student views the original constitution at the National Archives in Washington, D.C. Stuart Taylor argues that the Bush administration has incorrectly interpreted the powers of the executive branch as laid out in the Constitution. (AFP/Getty Images)

While the Supreme Court is widely seen as the principal check on presidential overreaching, history suggests that wartime presidents usually get what they want unless Congress and the courts both push back. The courts can decide only a few narrow issues as cases come before them, not legislate detailed rules to restrain the president. As the late Chief Justice William Rehnquist once wrote, the Supreme Court has historically been reluctant "to decide a case against the government on an issue of national security during a war." That is, unless the courts see the president and Congress as being at odds. When Harry Truman tried to seize the nation's steel mills to prevent a strike during the Korean War, he did not get his way. Congress refused to authorize his request for seizure, and when he went ahead anyway, the Supreme Court slapped him down forcefully.

In a famous concurrence – cited by both Chief Justice John Roberts and Justice Samuel Alito during their confirmation hearings as the touchstone of separation-of-powers analysis – Justice Robert Jackson wrote: "Presidential powers are not fixed but fluctuate depending on their disjunction or conjunction with those of Congress... When the President takes measures incompatible with the expressed or implied will of Congress, his power is at its lowest ebb." Jackson added, "No penance would ever expiate the sin against free government of holding that a President can escape control of executive powers by law through assuming his military role."

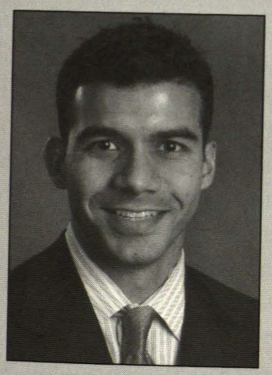
That danger looms large today. In this war without an apparent end, in which swift and decisive presidential action can be critical and new attacks could embolden presidents to take the Bush Doctrine to new extremes, will we become habituated to creeping presidential autocracy? Will the number of Americans detained by the military without criminal charges rise from two (so far), to 200, to 2,000, to 20,000 or more? Will this administration's extreme claims take root as precedent and eviscerate our system of checks and balances?

Much will depend on Roberts and Alito, but more will depend on Congress. The two Bush appointees are nobody's patsies, but they rightly support a presidency muscular enough to defend the nation. They know that courts have neither an electoral mandate nor the expertise to second-guess presidential claims of wartime necessity. If the Court is to be an effective check, it will need help. "A crisis that challenges the president equally or perhaps primarily challenges Congress," Justice Jackson wrote in an unpublished draft of his concurrence. "If it does not rise to its occasions, if it is petty, partisan, or indecisive power will gravitate to the Executive by force of public opinion whether this Court affirms or not." P

The Sand Trap

or "Your Wait Time is Approximately the War on Terror"

By Anant Raut



Anant Raut PC '96, an attorney with Weil Gotshal and Manges LLP, represents five Saudi Arabian detainees at Guantánamo Bay. Ben Schrader PC '03, a legislative specialist who works with Mr. Raut, helped write this article. To date, not one of their clients – who have been in Guantánamo since 2002 – has ever been charged with a crime.

Many Americans view the existence of Guantánamo Bay as a necessary evil, and can justify its existence on the belief that protection from the lawless requires a black hole beyond the law, that the defense of freedom requires its premeditated suspension. But this view derives more from widespread mischaracterization than from a factual assessment of the detainee situation in Guantánamo Bay. Let's begin by addressing just a few of these unfounded assertions. In truth, the rhetoric that supports these policies is not only one-sided but also entirely without merit.

Myth #1: The people being held in Guantánamo Bay are the "worst of the worst."

Fact: 55% of the detainees in Guantánamo Bay have never engaged in any hostile action against the United States or its coalition allies. And these are not the assertions of their lawyers; rather, this figure comes from a statistical analysis conducted at Seton Hall of the government's own court filings in hundreds of detainee cases. In other words, the government's best evidence against these individuals makes clear that more than half have never been guilty of anything other than being in the wrong place at the wrong time.

Myth #2: The people being held in Guantánamo Bay were all caught on the battlefield.

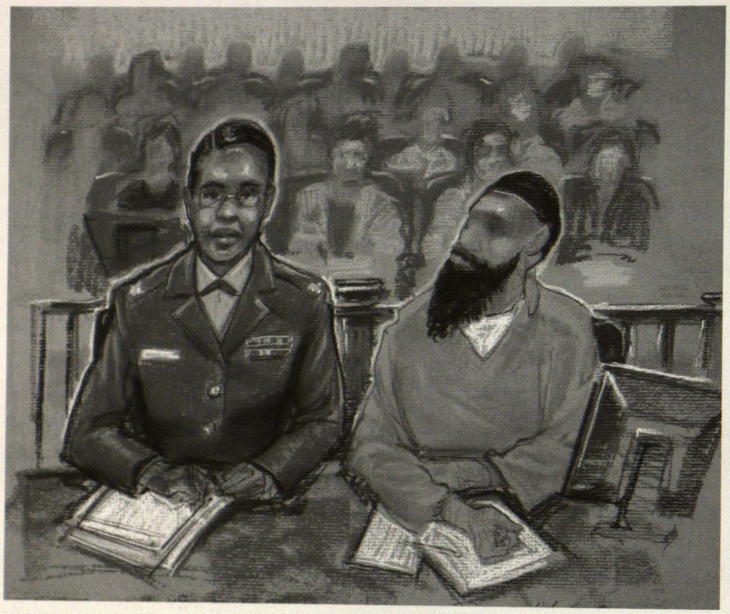
Fact: Only 5% of the detainees in Guantánamo Bay were captured by U.S. forces on the battlefield. The rest were turned over to the U.S. by Pakistani forces, Northern Alliance soldiers, local warlords, and bounty hunters, many of whom were tempted by flyers passed out by the U.S. military which translate as follows: "Get wealth and power beyond your dreams. Help the anti-Taliban forces rid Afghanistan of murderers and terrorists." The perverse incentives offered up by this campaign were predictable and later borne out in reality. As Brigadier General Jay Hood, former Commander of the Guantánamo Bay Naval Station, would later observe, "Sometimes we just didn't get the right folks."

Myth #3: Everyone who is in Guantánamo must have done something to deserve it.

Fact: Demonstrably innocent people are still being detained in Guantánamo Bay. Eighteen Uighurs – ethnic Muslims from western China – have been deemed by the military's own sham tribunals not to be enemy combatants. In other words, the U.S. government has admitted that it has no basis to continue holding them, and yet still—more than a year since this determination—they remain captive.

Another illustrative example is that of my client, Adel al Nusairi. I have seen the government's file on him, and it is embarrassingly thin. They simply have no evidence against him. Traveling through Afghanistan on his way to obtain eye surgery, this former Saudi Arabian police officer was thrown into jail because the Taliban thought he was a Saudi Arabian spy. This apparently constituted enough of an "association" with the Taliban to land him in Guantánamo when American forces invaded Afghanistan.

Nor are these isolated incidents. Take the case of Abdur Sayed Rahman, recently detailed in the *New York Times*. This man, a chicken farmer, was abducted in Pakistan, sent to Guantánamo, and accused of being Abdur *Zahid* Rahman, a former Taliban governor. At his combatant status determination hearing, he informed the presiding officer of the misunderstanding surrounding his name, and urged the officer to contact the current governor to quickly resolve the issue. The officer in charge responded that it was *Rahman's* responsibility to pro-



A Fair Hearing? In this court drawing, Binyam Muhammad sits with his defense council at a military hearing in Guantánamo Bay, Cuba. Muhammad was accused of plotting to blow up apartment buildings and gas stations in the United States. (Janet Hamlim/AFP/Getty Images)

duce evidence on his behalf. Rahman politely pointed out that he was incommunicado in Guantánamo and had no access to a phone. He was then informed that he would have plenty of time to write a letter to the governor in the intervening year before his next hearing.

Or the case of Shafiq Rasul. He and two friends were on their way to a wedding in Pakistan when they were picked up and sent to Guantánamo. They were accused of appearing in a bin Laden video despite Rasul's protests that, at the time the video was made, he was a student at the University of Central England and worked at the electronic store Curry's, facts which were easily verifiable. But his interrogators persisted, and after several weeks of intense interrogation, the three cracked and admitted to being the men in the video. With great fanfare, the U.S. government pointed to their confessions as a triumph of the system – until MI5 bothered to check with Curry's and the University of Central England. And then, with considerably less fanfare, the United States put them on a plane and returned them to England.

What made the detainee situation possible? The short answer is a confluence of unfortunate events and decisions, the first being "intel on the cheap." The U.S. under-committed its intelligence apparatus to the Afghanistan-Pakistan region after 9/11, and relied instead upon bounties and the hope that the free-market greed of the local population coincided with American interests.

Next, this Administration then abandoned the military's own battlefield screening system as embodied in the Uniform Code of Military Justice, which requires, among other things, determinations on the battlefield of an individual's "enemy combatant" status. In its absence, these individuals were shipped in bulk to Guantánamo, where fresh-faced interrogators with little or no field training waited with an understanding that there were almost no restrictions on what they could do to make these so-called terrorists crack.

Finally, their detention was ultimately justified by the Administration's expansive definition of the term "enemy combatant." Under the administration's interpretation, Hakeem Olajuwon, former all-star center for the Houston Rockets and a two-time NBA champion, would be considered an enemy combatant. Why? Because a charity he set up helped fund a mosque that, as it later turned out, had ties to terrorist organizations. Unintentional? Undoubtedly. Far-fetched? Hardly. In a December 2004 hearing before Judge Green of the District Court of the District of Columbia, the government argued that it had the authority to detain "[a] little old lady in Switzerland who writes checks to what she thinks is a charity that helps orphans in Afghanistan but [what] really is a front to finance al-Qaeda activities."

And yet the government has seen fit to accuse the lawyers for the detainees of filing frivolous litigation, when it is the government that has been tying up the Supreme Court's 2004 Rasul decision (which guaranteed detainees the right to be heard in court) in appeal after appeal. And so I am left to return to Guantánamo in a few weeks to try to explain to Adel, almost a year after I first met him, why I haven't been able to get a judge to just look at the evidence against him and let him go.

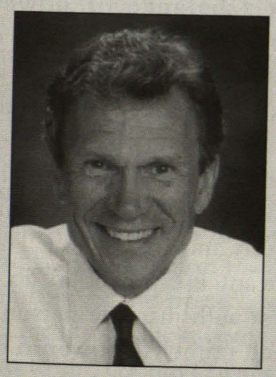
Despite all of this, many still accord this Administration the benefit of the doubt, out of some disquietude that it is better to be safe than sorry, and to simply leave the detainees where they are. But for how long? Until this "war on terror" is over? We could track down every single member of al Qaeda worldwide, throw them all into solitary for the rest of their natural lives, and I guarantee you, I *guarantee* you, this war would not be over. Why? Because terrorism is not a sovereign state. Terrorism is a tactic, and all you need to be a terrorist is a gun and the will to die.

After Pearl Harbor, thousands of innocent Japanese-Americans were locked up in the name of national security, and during the McCarthy-era witch hunts, thousands of innocent people were ruined in the name of national security. History, if nothing else, is a creature of habit. But the truest test of a nation's commitment to liberty occurs not when it is most readily given, but when it is most easily taken away; and it is for these reasons that we can not – we must not – turn a blind eye to what is happening at this very moment on the vestibule of Democracy.

Our Music of Democracy

The Decline of Public Debate in America

By Tom Daschle



Tom Daschle represented South Dakota in the United States Senate from 1987 to 2005, serving both as Minority and Majority Leader during his tenure. He is currently a Senior Fellow at the Center for American Progress and a Special Policy Advisor at Alston & Bird, LLP.

In January 2002, I led a bipartisan congressional delegation to Kabul, Afghanistan, to meet with our troops who had recently liberated Afghanistan from the Taliban and to meet with newly installed President Hamid Karzai. We met President Karzai and his cabinet in the Afghan National Palace, which had no heat and limited electricity. Karzai reported that at that moment there was not enough money in the Afghan Treasury to pay members of his government, let alone run programs for a country decimated from Soviet occupation, twenty years of civil war, and years of Taliban rule. He spoke at length about his hopes for Afghanistan, and then finished his talk with a simple point: "We want to be like you." Those words demonstrated in stark terms what all Americans understand to be true: America remains a beacon of hope for people all over the world who seek to build democracy, promote opportunity, and work toward a better life.

That we maintain such a position in the eyes of the world is a source of pride for America. At the same time, however, it is also a very serious obligation. How America conducts itself at home and abroad is closely followed by the world – our enemies looking for and hoping to exploit instances where we deviate from the values America represents; our friends hoping to use America's dedication to the dignity and freedom of each person as a fulcrum for change in countries who value neither. Insofar as we fail to meet the high standard we have set for ourselves, we embolden our critics and undercut our friends.

A string of scandals – from the mistreatment of detainees in Afghanistan, Iraq, and Cuba to an admission from the President that the government is maintaining a program that includes warrant-less wiretapping of American citizens – has eroded America's standing in the world and made clear that we are not living up to this important obligation. In fact, a series of surveys conducted by the Pew Charitable Trusts has found "anti-Americanism is deeper and broader now than at any time in modern history."

The reaction of the world is a matter of concern for two important reasons. First, it reflects a loss of admiration for America and undercuts our ability to demand greater openness and respect for freedom among other countries. And secondly, it is complicating our efforts to build and maintain an effective coalition in what the President now calls "the Long War."

The poor policy choices that have led to this dramatic loss of standing in the world for the United States are a result of America's having forgotten the key principles in the conduct of foreign affairs as crafted by our Founding Fathers. Over the course of the last five years, the President has amassed an enormous amount of power while a Congress controlled largely by his own party has refused to exercise aggressive oversight of the President's conduct of foreign affairs.

Looking back on that conversation with President Karzai, it dawns on me that while he and so many want to be like us, we have forgotten how it is that the Founding Fathers wanted us to be. While the Founding Fathers did not envision the hateful ideologies and intentions of twenty-first century terrorists, they more than adequately outfitted our institutions of government to maintain a balance of powers in this country that ensured healthy debate and protection of individual freedoms as we aggressively confront our enemies.

Pioneers of Democracy: Afghan President Hamid Karzai places petals on the memorial of Mahatma Gandhi during a visit to New Delhi. Karzai is Afghanistan's first democratically-elected leader. (STRDEL/AFP/Getty Images)

Inviting Struggle

After the conclusion of the Constitutional Convention, Benjamin Franklin was stopped by a woman who asked him, "Well, Doctor, what have we got? A monarchy or a republic?" Franklin replied, "A republic, if you can keep it."

When it comes to the conduct of national security, the Founding Fathers gave us a challenging blueprint – in the Constitution – for how we might "keep the Republic."

Article II of the Constitution makes the President the "Commander-in-Chief of the Army and Navy of the United States," but Article I makes clear that only the Congress can "declare War, grant letters of Marque or Reprisal, and make Rules concerning Captures on Land and Water."

Article II of the Constitution also permits the President to "make Treaties," yet it requires two-thirds of the Senate to agree to the Treaty for it to become binding on the United States. The same Article II permits the President to nominate and appoint "Ambassadors and other Public Ministers and Counsels" but requires that it be done "by and with the Advice and Consent of the Senate."

And Article II vests executive Power in the President of the United States, but Article I gives the Congress the power of the purse.

Given these competing and overlapping grants of power in the Constitution, it is no wonder that one constitutional historian calls the provision of powers to conduct foreign affairs in the Constitution "an invitation to struggle," or that Lee Hamilton, a widely-respected foreign affairs expert and an 18-term member of the House of Representatives, says that the Constitution results in a "creative tension" in the conduct of national security.

The Music of Democracy

Having lived through the fight to declare independence from the monarch in England, the Founding Fathers believed that we needed to maintain a balance of powers among three co-equal branches of government, not leaving the government's great powers in the hands of one person. Having lived, too, through the difficult Revolutionary War, they saw very clearly the difficulty and cost of war. They did not want the power to go to war to rest with just one person.

Recognizing that leaving such immense power in the hands of one person would lead not merely to poor policy judgments but ultimately to the abuse of that power, the Founding Fathers wanted to maintain a balance of power through shared decision-making on difficult policy decisions and, once decisions were made, aggressive congressional oversight of the implementation of those decisions.

The wisdom of the Founding Fathers is that this struggle between the Executive Branch and the Congress is resolved only through public debate and deliberation. That debate is what I refer to as the "music of democracy." That music is not always stereophonic and is often discordant. And that is, of course, the point.

Regrettably, over the last several years the issues on which we need most desperately to hear this music – the conduct of national security policy and the appropriate balance between personal freedom and national security during the war against terrorism – have seen nearly no debate. The music of democracy has been drowned out.

That's true for a number of reasons.

First, none of the powers conferred in the Constitution are self-executing. That is, the powers are there to be used – but each institution needs to make the decision to exercise those powers. Invariably, during wars the power of the President has strengthened relative to the power of Congress. This was especially true in the early months after the attacks of September 11, 2001. General unease with the nature of the threat posed to America and a common resolve among Americans to confront terrorists that threatened the country translated into a certain amount of deference to the President in the conduct of the war against terrorism.

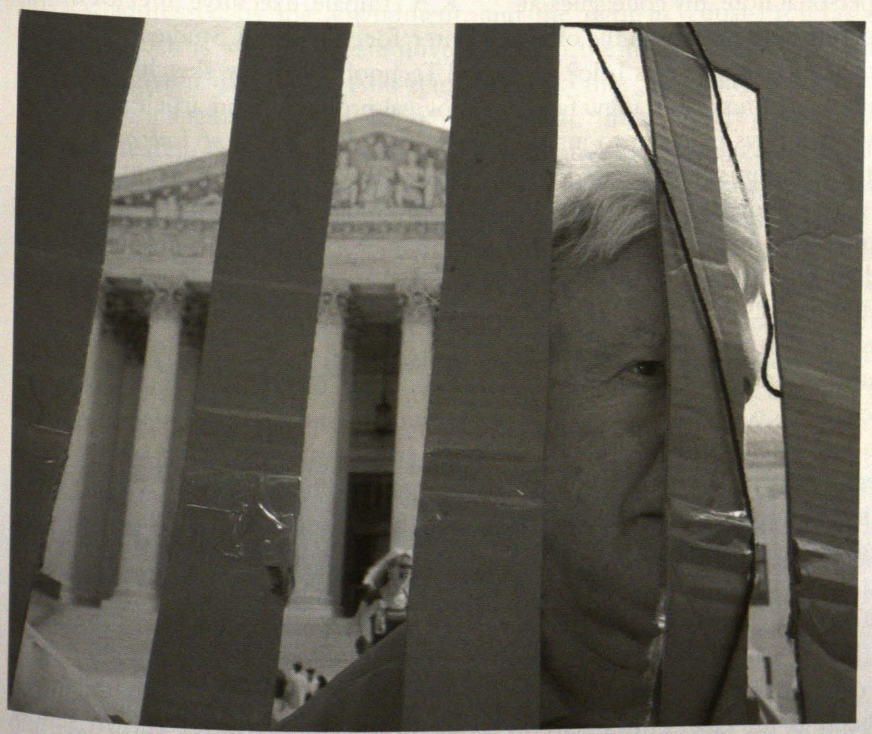
Secondly, the President and his political team have con-

INSOFAR AS WE FAIL TO MEET THE HIGH STANDARD WE HAVE SET FOR OURSELVES, WE EMBOLDEN OUR CRITICS AND UNDERCUT OUR FRIENDS.

ducted a concerted campaign to associate the music of democracy – public debate of his policies on national security – with a lack of patriotism. Some of the most obvious targets of the campaign were public officials – like Senator Max Cleland of Georgia, who was accused by the White House of being unwilling to do everything he could to stop another attack from Al Qaeda. At the same time, however, this campaign to limit public debate has included a now well-publicized White House effort against Ambassador Joe Wilson, a private citizen, and members of the press corps as well.

Thirdly, the most controversial decisions taken with regard to the conduct of the war on terrorism – to include policies with regard to the treatment of detainees and warrant-less wiretapping of American citizens – were specifically withheld from public debate. That was true as early as three days after the attacks of 9/11 when, as we in the Senate finalized deliberation on the resolution authorizing the use of force against those responsible for the attacks on New York and Pennsylvania, the White House sought a dramatic change to the legislation that would have given the President broad authority to exercise expansive powers not just overseas – where we all understood he wanted authority to act – but right here in the United States.

And lastly, since 2003 the federal government has been dominated by single party rule and the Republican Congress has been reluctant to perform aggressive oversight of the conduct of the war against terrorism. The most recent decision that demonstrates the lack of aggressive oversight is the decision of the Senate and House Intelligence committees to refuse to investigate the warrant-less wiretapping program. Instead of investigating the program in question, the Congress appears poised to accept demands of the White House to withhold information on the program even from members of the House and Senate Intelligence Committees, a surrender of Congressional power unlike any other I have ever seen.



Denouncing Detainment: Calling for fairer treatment of prisoners at Guantánamo Bay, protestors take part in a Coalition of Civil Liberties Groups rally outside the Supreme Court. (Tim Sloan/Getty Images)

There is a very practical benefit of the Founding Fathers' decision to invite struggle and debate in the conduct of national security policy. The debate among the competing branches of government helps to inform the American public about what its government is doing in its name. We have learned time and again in our country's history that you simply cannot sustain a foreign policy or national security effort without that informed consent of the American people

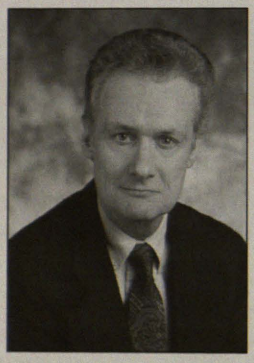
It is when the debate stops – when the struggle and music stop – that we lose the American public. Consider the Beirut deployment in 1982 or the Somalia Intervention, neither of which were the subject of Congressional authorizations for the use of force. When we ran into problems, the support of the American public could not be sustained.

In retrospect, it is the open debate and exchange of ideas – not our economic power or military strength – that President Karzai wanted to emulate. It is past time we re-start the music of democracy, as much for America itself as for the rest of the world.

Surveillance in Perspective

Executive Checks on the Imperial Congress

By Roger Pilon



Roger Pilon is vice president for legal affairs at the Cato Institute and director of Cato's Center for Constitutional Studies.

Of all the civil liberties issues surrounding the War on Terror, none seems to have generated more heat than NSA surveillance. After the *New York Times* revealed the Bush administration's secret NSA program last December, the outcry, at least from the chattering classes, was deafening. The *Times* itself has waged an unrelenting, almost daily campaign against the program. And the academy hasn't been far behind.

Yet of everything the administration has undertaken in the name of this war, the NSA program is probably the easiest to justify. You'd never know that from listening to the critics, however. Senator Russ Feingold is quite certain that the president has broken the law, and he wants him censured. And on a personal note, my colleagues at the Cato Institute are mostly on the other side. So how can I view this as I do?

Start with the context, plus a few facts. None of what follows is meant to justify everything the administration has done, much less the war in Iraq – far from it. On so many fronts, those of us who stand for limited constitutional government are dismayed by this administration. Thus, I limit myself to the NSA program alone. And on that, the dominant fact initially is the absence of facts: none of us on the outside knows much about the program, and understandably so.

We do know, however, that foreign intelligence gathering is essential if we hope to prevent another 9/11. And we know that the 1978 Foreign Intelligence Surveillance Act (FISA), which imposes statutory restraints on that activity, is woefully out of date, much as the label critics slap on the NSA program, "domestic wiretapping," is both out of date and tendentious. We're not talking here about agents fixing alligator clips to wires connecting telephones. Couple today's technology with the surveillance problem before us, and the issues become far more complex than most critics imagine.

That surveillance problem was well stated by Judge Richard A. Posner of the Seventh Circuit in a Feb. 15 *Wall Street Journal* piece. FISA may serve "for monitoring the communications of *known* terrorists," he wrote, "but it is hopeless as a framework for *detecting* terrorists. It requires that surveillance be conducted pursuant to warrants based on probable cause to believe that the target of surveillance *is* a terrorist, when the desperate need is to find out *who* is a terrorist" (emphasis added), which he likened to looking for a needle in a haystack.

K.A. Taipale, executive director of the Center for Advanced Studies in Science and Technology Policy, sketches the technological problem in an article forthcoming in the *NYU Review of Law and Security*, "Whispering Wires and Warrantless Wiretaps." In modern networks, Taipale writes, communications are broken up into "discrete packets" that travel along independent routes and are then reassembled.

"Not only is there no longer a dedicated circuit, but individual packets from the same communication may take completely different paths to their destination. To intercept these kinds of communications, filters and search strategies are deployed at various communication nodes to scan and filter all passing traffic with the hope of finding and extracting those packets of interest and reassembling them into a coherent message. Even targeting a specific message from a known sender requires intercepting (i.e., scanning and filtering) the entire communication flow."

Were FISA strictly applied, Taipale concludes, no automated monitoring of any

Wary of Wiretaps: A pedestrian passes demonstrators protesting the Bush administration's domestic wiretapping program in downtown Chicago. The demonstration was organized by MoveOn.org. (Tim Boyle/Getty Images)

kind could occur.

There's the problem, tactical and technical, in barest outline. Clearly, for surveillance to serve us, we're going to have to make some changes. Fortunately, the Framers gave us a constitution that accommodates the modern world, but only if we read it rightly. Critics point to the guarantees of the Fourth Amendment. But let's remember that there are two rights at issue here: the right to privacy, addressed by the amendment, and the right to security, which is why we create government in the first place and give it its powers. And remember too that we have no right against warrantless but only against "unreasonable" searches. As a first strike on the normative side, I'll say simply that, insofar as "unreasonable" is informed by a cost-benefit analysis, the call seems clear: erring on the side of security costs little (indeed, you won't even know your call or email has been intercepted, much less have a loss); erring on the other side can have tragic costs, as we've seen and will see again below.

But administration critics lean more toward statutory and structural arguments. They point to FISA as the "exclusive" means through which Congress has authorized the president to gather foreign intelligence, and they dismiss his response that Congress's Authorization to Use Military Force (AUMF), passed right after 9/11, overrides FISA. To be sure, implied repeals are disfavored, as critics note, but that's not an absolute rule, as the *Hamdi* Court demonstrated. Hamdi had argued that federal law prohibited his detention and that the AUMF was silent on that law. Justice O'Connor's plurality opinion (joined by Justice Thomas on this point) held that the AUMF authorized the president to use "all necessary and appropriate force," and that entailed, as one of the "fundamental incidents of war," the power to indefinitely detain citizens declared to be enemy combatants. Surely, foreign intelligence gathering is at least as fundamental.

But statutory arguments don't go to the heart of the matter. In fact, they only muddy the constitutional waters by implying that the president may act pursuant only to congressional authorization – a contention at odds with the Constitution and with most of our constitutional history. Indeed, what we have here is a post-Vietnam gloss on the post-Progressive view of the Constitution. During the New Deal, recall, turn-of-the-century Progressives succeeded finally in "democratizing" the Constitution – in finding plenary power in Congress to regulate and redistribute at will, relegating to the executive the power to execute that "law." Years later, in the wake of the Vietnam War, this imperial Congress fixed its gaze on foreign affairs too, enacting not only FISA but, five years earlier, the War Powers Resolution, which administrations of both parties have said unconstitutionally encroaches on the president's inherent power, though the Court has yet to rule on that.

We need only look to the Constitution's vesting clauses to see that the modern view is problematic. In particular, Article I limits Congress' powers to those "herein granted"—enumerated mainly in section 8. By contrast, Articles II and III grant an unqualified "executive Power" and "judicial Power" to the president and the Supreme Court, respectively. The scope of those unqualified powers is no small matter, of course, requiring recourse to the original understanding. But by the same token, if Congress is to restrict the president's inherent power, it must find its authority in one of its enumerated powers, and that is no small matter either. Thus, critics tend to cite Congress's power "to make rules for the government and regulation of the land and naval forces." But that power was meant to enable Congress to establish a system of

Pointing Fingers: Sen. Russ Feingold (D-WI) questions a witness during a Judiciary Committee hearing on March 31. While Sen. Russ Feingold has moved to censure President Bush over the NSA wiretapping program, Mr. Pilon argues that the program is both constitutional and necessary. (Chip Somodevilla/ Getty Images)

military justice outside the civil courts, not to enable it to micromanage foreign affairs.

This is hardly the place to plumb that original understanding. Suffice it to say that Yale's own John Yoo, now teaching at Berkeley's Boalt Hall, has done so masterfully in his new volume, *The Powers of War and Peace*, answering in the process the scholarly arguments for an imperial Congress that emerged a decade ago, in part again from Yale. But aside from the historical record, which shows that the president was to be the nation's principal agent in foreign affairs, restrained only by specific grants of congressional power "strictly construed," the courts to this day have largely upheld that arrangement.

Thus, administration critics often cite *Youngstown*, the 1952 steel seizure case, to buttress their argument. But they forget that Justice Jackson carefully distinguished that domestic case from one involving external affairs: "I should indulge the widest latitude of interpretation to sustain [the president's] *exclusive* function to command the instruments of national force, at least when turned against the *outside* world for the security of our society" (emphasis added). The Court made a similar distinction in the often cited 1972 *Keith* case involving solely *internal* threats from *domestic* organizations.

And as recently as November 2002, in *In re: Sealed Case*, the FISA Review Court spoke directly about inherent presidential power. Citing an earlier case called *Truong* that dealt with pre-FISA surveillance based on "the President's constitutional responsibility to conduct the foreign affairs of the United States," the court said: "The *Truong* court, as did all the other courts to have decided the issue, held that the President did have inherent authority to conduct warrantless searches to obtain foreign intelligence information.... We take for granted that the President does have that authority and, assuming that is so, FISA could not encroach on the President's constitutional power." The Supreme Court let the decision stand.

None of this is to say that Congress is powerless to restrain the president. It has, in particular, the power of the purse and, ultimately, the power of impeachment. But in exercising those and other enumerated powers, it must be careful not to intrude on the president's inherent power. There is no bright line here, of course, and politics will and doubtless should play a larger role than law in drawing lines, just as cooperation between the branches is better than the confrontation this administration tends toward. But it is the modern tendency toward congressional micromanagement that must be avoided.

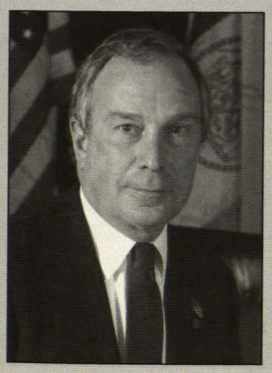
Indeed, do we need any better evidence of that than has come recently from the trial of Zacarias Moussaoui? Echoing the earlier complaints of former F.B.I. agent Colleen Rowley, current agent Harry Samit recounted how he tried desperately to obtain a FISA warrant to search the computer of Moussaoui, then in custody on an immigration violation. But superiors at the Justice Department declined his request, fearing that Samit did not have enough to satisfy FISA's requirements. In other words, only days before 9/11, we erred on the side of privacy, and we paid the price. Fortunately, the Senate has come recently to appreciate that: its earlier push to hobble the president has now abated. P

COUPLE TODAY'S TECHNOLOGY WITH THE SURVEILLANCE PROBLEM BEFORE US, AND THE ISSUES BECOME FAR MORE COMPLEX THAN MOST CRITICS IMAGINE.

Gotham's Bully Pulpit

An Interview with New York City Mayor Michael Bloomberg

Conducted by Teddy Bunzel and Elizabeth Smith



Michael Bloomberg has served as mayor of New York City since 2002. He is also the founder of Bloomberg L.P., a leading financial services company.

As New York City allows its mayors only two terms in office, how does the lack of reelection considerations play into the formation of your second term agenda?

I would like to think that I said what I believed in the first term regardless of whether it was politically correct or not. When you're not running for reelection, you're not unmindful of the need to keep the constituency. I have always said that if you want to build your character, put a smoking ban in place, raise taxes, and then go do a parade on Staten Island passing a bunch of bars. Today I have received 80% of the vote on Staten Island, the smoking ban is one of the most popular laws this city has ever had, the firefighters are happy because they have big contracts, and for the taxes, people have gotten safer, cleaner streets and better education.

On a lot of issues, including abortion, gun control, and same-sex marriage, you seem at odds with many of your Republican colleagues. How do you reconcile your partisan affiliation with the views you hold?

There is no "Republican" or "Democrat." philosophy. There lots of very conservative Democrats and very liberal Republicans, and in different election cycles they are on different sides of the issues. On social views, there is more geographical consistency than partisan consistency. A New York City conservative is probably a communist to the rest of the country, and a flaming liberal Bolshevik in the Bible Belt is to us a right-wing nut. So it's geographical more than anything.

I would describe myself as a social liberal and a fiscal conservative, and I was probably more socially liberal than any of the four Democrats that ran against me, and I am certainly more fiscally conservative than any of them. I believe we should have good government and get something for our money, and I think that if we want something, that's fine, but we should pay for it rather than postpone the bill to our kids. Conservatives should agree with me that government should only do those things that are necessary and that you should be free to have your own liberties: marry who you want, say what you want, do what you want, as long as you are not hurting anybody else. Everybody says "exactly, but not in this case." It is both the left and right that want to tell you what to believe and how you should behave. They profess to have an interest in allowing you the freedom to choose, but that's only if you choose what they believe.

What, then, brought you to the Republican Party?

I don't know if there is any great difference between the parties. I was a member of the Democratic Party, but I don't believe there is a Democratic philosophy. In New York City there are so few Republicans that there are no primaries, so if you want to vote in all the elections you really have to be a Democrat. I could never have gotten elected as a wealthy, white, male, heterosexual candidate in New York City in a primary, because primary voters are very different from the general election—you get the very left wing of the Democratic Party and the very right wing of the Republican Party, and they look for different things than the general election voters. So I never could have become mayor running as a Democrat, and the Republicans welcomed me to run as a Republican. You know, Rudy Giuliani's and

my social views probably aren't very different: he's always been pro-choice, he's always been pro-gay rights. A lot of the left doesn't like him, but in terms of social issues we both believe in trying to make welfare programs be efficient and go to where the need is. We both have different styles, but a Republican in this city is pretty liberal. You have to look at the local politics.

Considering the intense political debate over the Dubai Ports World deal, and that New York City was one of the major ports in question, how do you feel about foreign ownership of ports in general?

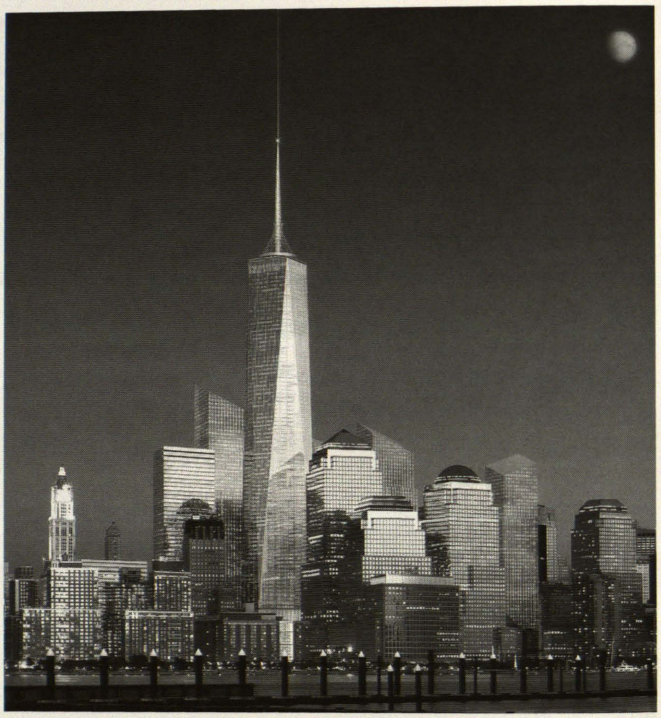
If we were worried about security at our ports, the time to do that was two or three decades ago when we got away from the port business. There is no American ownership of any ships anymore, and there is virtually no American company that can manage any more than one or two American ports. The security issue is overseas when you pack the containers, and we don't have any American companies there; it's how they get here and who monkeys with them after they are packed. Every year we cut back money for the Coast Guard and Customs, and they are the ones that do the security.

Also, incidentally, your job when you go to work will depend on international trade one way or another, so if we don't allow companies to do business here, how receptive will they be to our business requests? This has been demagoguery at its worst.

The transit strike last December lasted three days, while the previous transit strike in 1980 lasted eleven. What about this strike – the actions taken on both sides as well as the circumstances surrounding it – allowed it to be cut short? What lessons, if any, did you take from the 1980 experience in dealing with the 2005 strike?

It's very hard to look and say you did something the way another elected official did, because the circumstances are never the same. The union has changed, and the temperament of the public has changed. For example, Mayor John Lindsay in 1966 came into office and was faced with a transit strike that began on the day of his inauguration, so he had no experience, no team in place, didn't know what to do, and the union took advantage of it. The settlement was not good for the MTA or the city. This time we had a mayor who had been in office for four years, who had been re-elected and has term limits so he can't run again, isolating him from some of the political pressure.

He also had a public that had no sympathy because it was during the holiday season. A lot of people got hurt, particularly poor people who couldn't get to work. If you worked in an office, the company probably paid you whether you showed up or not, but if you worked in a small store or as a dishwasher in a restaurant, you didn't get paid. So the people getting hurt were the poor.



Rebuilding the Ruins: A computer model of the "Freedom Tower," as unveiled by architect David Childs in June 2005. The plan has since stalled. Mayor Bloomberg feels that planning efforts should have allowed for more historical perspective in the building's design. (Mario Tama/AFP)

This is not to say that transit workers don't work very hard, but there was not a lot of sympathy for them. So this was a strike that did not have a lot of public support, and I think that from day one the union did not know what to do if the mayor and governor told the MTA not to cave. As mayor I said that the strike was unconscionable. I called their behavior "thuggish," which they went crazy about, and I pointed out that they were hurting poorer people, so right away there was a back-channel negotiation. In any strike there is always negotiation that goes underway, even when people say they aren't talking. So I think this strike was very different.

The education reforms of your first term were followed by a notable increase in test scores. What do you plan to do in your second term to continue these gains?

The greatest accomplishments in the second term will come out of the just-signed teachers' contract, which requires all teachers in all schools and all grades to teach an extra thirty-seven-and-a-half minute class Monday through Thursday. The city has agreed that there will be no more than ten students in each class. The effect of this is that 330,000 kids get an extra class four days a week. Now

some schools may not have any kids with below-average reading skills, so they can use that time for advanced placement courses, but if there are kids who are below average, they have to attend these classes. I think this will be as important as any reform that we have ever done because you've got the kids who really need the extra help in a small group with a teacher who can focus on them four days a week. It will make a very big difference in closing the ethnicity gap between black and Latino kids and white and Asian kids which has gone on for a long time. It has started to close, and maybe one of the reasons why I get very high ratings among black and Latino communities is that they want their kids to get an education, and now they see their kids making real progress. I think that this measure will go a long way to help those kids.

Do you believe that your first-term educational reform successes on a city level, through centralization and accountability, can serve as a model for state or even federal educational reform?

Generally the federal government doesn't have a lot to do with education. They provide some money, but I'm not an expert on it because what the federal government does doesn't really apply to New York City. But I do think that the city model would work in any city, which is where education really is provided.

Over four years after September 11, construction on ground zero has been somewhat lagging. What are your second term goals on ground zero, and as mayor what can you do to speed up the rebuilding process?

It's the Port Authority that owns the land, which is why the governor has a lot of say and the mayor has relatively little, although I have the bully pulpit and we do control some liberty bonds which I refuse to give out. The city has a vested interest in rebuilding because it is part of the whole city; the Port Authority has a vested interest because they own the land, which gives the State of New York and the State of New Jersey a vested interest, and all of the sudden New Jersey is going to get a tunnel they want because that's the condition of signing on. Larry Silverstein, the developer, has some interest, so we'll see how it plays out. I think it's a bit unfair to say that nothing has gone on – there is a lot of infrastructure work and there is a lot that has gone on around the site and elsewhere in lower Manhattan. But this is not easy; you have the families that want to create a memorial, you have the neighbors who don't want to have a memorial in their neighborhood, you have economic development interests, you have cultural interests, and a lot of these things push in different directions. It's hard to get everyone on the same page. What we should have done was raise all the money for the memorial and waited ten years for the design; it took ten years to do the Vietnam Memorial and fifty years to do the World War II Memorial. I happen to think the design is good, but we don't have the perspective of history just yet.

In your second inaugural address you spoke at length about the need to curb the increase in illegal guns in New York City, but since most gun laws are made at the state and federal level, what can you do to halt the rise in illegal arms?

Use the bully pulpit. You can try to rile up the police departments – after all, when somebody tries to advertise a hollow-nosed, bulletproof-vest-piercing bullet, they aren't going after deer. If you are a police officer in any place in this country, why you don't get your spouse and your kids and go down and start screaming bloody murder? The Second Amendment was never designed for you to carry an automatic weapon under your clothing in a big city. Guns kill people – that's the only reason to carry a loaded gun.

What do you plan to do at the end of your second and final term?

I've said that I'm going to sell my company sometime during my second term, and I would like to do what Bill Gates and George Soros do: spend my time as a philanthropist. It's a different career – I've done the business world, and arguably reasonably successfully; I've done the government world, and at least through today arguably reasonably successfully. Philanthropy would be a whole new world and something else to try.

But there is no other job that I'd go back to in the business world, and there's no other job that I'd go back to in government – the mayor of the city of New York is the best elected job that I know of in the world and certainly in the United States.

So no further political ambitions?

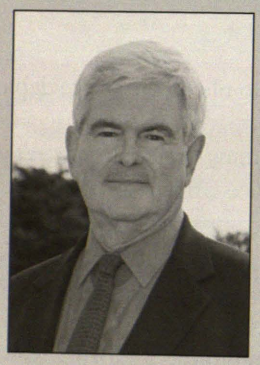
No. I think I have a better job than the Governor, and I think I have a better job than the President. There's less legislative oversight, and you really do things. We blame the Governor and the President for a lot of things, but it's the legislature that does things and the chief executive on both those levels who has to make a deal. The city council here doesn't have as much power—it's a relatively strong-mayor, weak-city-council system. If you go out to Los Angeles, it's exactly the reverse.

I also think that somebody pro-choice and pro-gay-rights who has said that it's not the government's business who you marry would not get elected president in this country. P

Competing in a Global Economy

Suggestions For Domestic Reform in the Twenty-First Century

By Newt Gingrich



Newt Gingrich is the immediate past Speaker of the United States House of Representatives, a position he held from 1995 to 1999. First elected to the House from Georgia's Sixth District in 1978, he was an architect of the 1994 Republican "Revolution" and served until his retirement from Congress five years later. He has recently been mentioned as a potential 2008 presidential candidate.

Since our country's founding, each new generation of Americans has inherited a country far more prosperous and wealthy than its predecessor. Soon this could change.

Not since 1840 has America encountered economic competition from larger, foreign markets. China and India are foreboding challengers and serious competitors. America faces a choice: settle for second-best and decay comfortably and elegantly like continental Europe or make the real changes required to compete head-on with China and India. What do these real changes entail?

It seems simplistic, but it is worth stating: a twenty-first century global, information-age economy is different than a nineteenth century industrially based economy. So why would anyone think that the institutions, regulations, and laws created during this bygone era are still in sync with the world today? Remaining the most creative, entrepreneurial, and prosperous country in the world will require real change: transformation of litigation, regulation, taxation, education (especially in math and science), healthcare, social security, and our approach to energy and the environment. Our governmental systems and legislative procedures must be modernized for the twenty-first century, too.

Real change should begin with tax reform that favors saving, investment, entrepreneurship, and job creation. This involves eliminating the capital gains tax. Former Federal Reserve Chairman Alan Greenspan testified that the most economical rate for taxing capital gains is zero because tax-free capital gains will encourage greater risk-taking and lead to more entrepreneurial behavior. This leads to more prosperity, a bigger economy, and better jobs.

The death tax should be permanently abolished so that entrepreneurs, family farmers, and business owners no longer have to fear losing their life's work to the tax collector. By remaining blind to the consequences of our tax code, we are favoring market forces that will gradually lead to more takeovers of American companies by foreign firms (e.g. Siemens taking over Westinghouse). The European Union now blocks American mergers even between American companies (e.g. Honeywell and General Electric).

The regulatory state must be completely overhauled as well. Government imposes on business obsolete, absurd work rules, even though these raise costs, lower productivity, and make America less competitive in the world market. This over-regulation fails to meet any cost-benefit test and clearly drives jobs out of the United States. Instead of acknowledging this reality, many on the Left have advocated economic isolationism and protectionism to combat outsourcing, a policy that could help China and India surpass the United States in economic power in our children's or grandchildren's lifetime.

Our country's economy will suffer as long as trial lawyers continue bankrupting our health care system with litigation and driving away good doctors. We need to create a system of Health Courts and other arbitration systems to allow conflict resolution to occur quickly and simply without court actions. People should have the right to appeal to court for redress but their first step should be a system of arbitration at maximum speed and minimum cost.

Science and technology have been the basis for American economic achievements. If we lose this advantage, we will cease to be the leading economic power. Math and science learning should be taken out of the current bureaucratic, tenured, unionized,

AMERICA FACES A CHOICE: SETTLE FOR SECOND-BEST AND DECAY COMFORTABLY LIKE CONTINENTAL EUROPE OR MAKE THE REAL CHANGES REQUIRED TO COMPETE HEAD-ON WITH CHINA AND INDIA.

credentialed but nonperforming system. Pioneering approaches, such as paying students from the seventh grade on for math and science learning, should be undertaken.

Improvements in science and technology alone cannot enable the United States to compete in a twenty-first century global economy. Young Americans deserve a better, transformed social security system that will give us a global economic advantage. An average-income couple in America would accumulate $829,800 by retirement if we create large personal investment accounts like the ones designed in the Ryan-Sununu bill—enough to pay them double what Social Security promises them but cannot pay.

Modernizing social security through personal accounts would also raise take-home pay and free workers to put hundreds of billions of ultimately trillions of dollars in savings and investment. The accounts indeed represent a new, very large tax-free shelter for saving and investment. It would be the equal of capital gains tax cut to further stimulate the economy. All of this adds up to a dramatic increase in savings and investment—and an economic boom.

An economically-competitive twenty-first century America must have a balanced budget. The key to the balanced federal budgets between 1998 and 2001 resulted from domestic discretionary spending restraint, structural reform of welfare and Medicare, and tax cuts that spurred economic growth. The President should establish a seven year plan to return to a balanced budget following these same principles. The transformation of our healthcare system must be central to this effort.

Built Tough? As part of a wider industry trend, Ford has announced that it will cut over 25,000 jobs and close 14 North American plants by 2012. Mr. Gingrich believes that America must become more business-friendly in order to keep up in the world economy. (Tim Boyle/Getty Images)

Health is one-fourth of all government spending and rising. Some studies show health care growing from almost 14% of our economy today to 21% (or one out of every five dollars) in a few decades. Already governors are seeing their Medicaid and state employee health costs eat into education, highways, law enforcement, and other budget priorities. Many businesses now rank health care as their fastest-growing expense and believe that it is a serious burden in competing internationally. Without real change, the current system will gradually crowd out more and more spending on other items. If our country takes the right approach, baby boomers will live longer and better, cost their children less, and create an economic boom for America.

We can transform the health care system by encouraging use of personal health savings accounts and revamping Medicaid. Health savings accounts are tax-free accounts used to pay for medical expenses. They are portable and can be funded by both employers and employees. Health savings accounts are pushing consumer-driven health care forward for greater member involvement, transparency, increased demand for medical information on cost, quality, and behavioral changes that can increase plan satisfaction while

lowering costs. The consumer – not HMOs or the government – controls health care decisions in this model.

The right approach for transforming Medicaid would eliminate racial and socioeconomic disparities and leverage Medicaid to achieve one hundred percent insurance coverage. In addition, the Medicaid administration should be entrepreneurial in aiming for results and solutions instead of process. Ultimately, the emphasis should be on health before health care.

We can accomplish health transformation with market technology, like e-prescriptions that deliver better care at a fraction of the cost. An intelligent Medicaid system will have proper disease management that targets resources and care on the neediest, highest-cost individuals. The government and Medicaid providers must be information facilitators to empower individuals under Medicaid so they can achieve long term health. This guidance will improve behavior at the patient level and solve Medicaid in the long term.

Medicaid should change the way it treats the relatively healthy poor, who have much different needs than the elderly or people with disabilities. Poor individuals should be offered vouchers for health savings accounts that sensitize them to the benefits of health care; prenatal care, for example, is far cheaper than neonatal intensive care. Similarly, a visit to a health clinic or doctor's office rather than to an emergency room will save a significant amount of money. But the rules currently allow for payment for expensive emergency room visits despite the lack of an urgent health care need. Government leaders need to rethink the part of Medicaid serving the healthy poor in the same way we rethought welfare in the 1990s.

All of these transformations will be for naught if our government is too slow to keep up. With 1880s civil service-based, process-oriented government bureaucracies, we cannot expect to lead the twenty-first century global economy. We must implement a new model: entrepreneurial public management. This system will create an intelligent, effective, limited government. This new model will reward creativity and risk-taking, accommodate flexibility, and maximize tax dollar spending.

Shifting the way we conceptualize, organize, and run public institutions will require new models for education and recruitment as well as for the day-to-day behavior. We must shift from professional public bureaucrats to professional public entrepreneurs. We must shift from administrators to managers.

This new model will have profoundly different metrics. Determining what metrics should be used to define success and maintaining those metrics with accuracy is a major part of this process. The absence of routine review is a major factor in the ineffectiveness and inefficiency of the federal government in almost every department. "You get what you inspect, not what you expect" is an old management rule. If no one knows what is going to be inspected and if no data are available for inspection, it should not surprise us that the current system also does not function very well. The key is for senior leadership to review the data constantly (weekly in key areas, monthly in others) and to collaborate with the team charged with implementing the system in order to effect change. Every significant strategy requires an "assessment room" in which the senior leadership can visibly see all the key data and review the totality of the strategy's implementation in one sweeping overview.

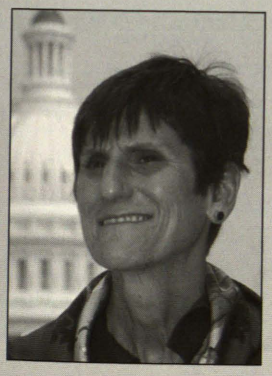
These profound transformations of our domestic and economic policies are a bold departure from the status quo. They will be bitterly opposed by the interest group lobbyists and those invested in the current systems. These forces have vast resources and can leverage their positions within the current power structure to wage an all out war against real change. However, we can overcome these disadvantages if we compel the American people, in terms of their lives and values, to speak out, work, and vote to mobilize the economy to stay ahead of India and China. Only the past has lobbyists. The future is unrepresented unless citizens engage.

Wheeling to Washington: A group of disabled Americans en route to the nation's capital for a protest against current Medicaid policy. Mr. Gingrich would like to reform Medicaid by emphasizing preventive care and making use of market technology. (William Thomas Cain/Getty Images)

A New Direction for Energy

How Our Farms Could Help America Reduce Its Dependence on Oil

By Rosa DeLauro



Rosa DeLauro represents Connecticut's Third Congressional District and is currently in her eighth term. She is the ranking member of the House Appropriations Agriculture Subcommittee and delivered a speech on this topic earlier this year at Yale.

Last month's news that gas prices rose 14 cents per gallon in only a week should have sent shockwaves across the country. That it hardly garnered a mention on the nightly news was a sad commentary on the degree to which rising energy costs have become a mainstay in our lives. Of course, whether we are parents heating our homes and driving ourselves to work, farmers harvesting and shipping crops, or small businessmen trying to keep our businesses up and running, $2.50 to $3 or more for a gallon of gas poses a big problem for all of us. But even as rising heating bills and gas prices squeeze families' pocketbooks, Americans are coming to understand that energy has become far more than a "pocketbook issue." They are beginning to see that energy just might be the single biggest challenge facing America in the twenty-first century.

To be sure, our dependence on foreign oil is already a matter of national security; we only need to look at the war in Iraq and our list of oil trading partners, most of whom are from the most volatile regions in the world, to understand that. But many Americans are also beginning to reflect upon the increasing number of extreme weather instances like Hurricane Katrina and wondering what role global warming and fossil fuels emissions play in them. And while they may not be aware that oil imports deepen our trade deficits by more than $200 billion annually, there is a growing understanding of the grave threat our dependence on oil poses to American competitiveness in the global marketplace. Indeed, it was no coincidence that President Bush's recent deal to provide India with nuclear energy technology came at a time when worldwide use of oil is expected to rise more than 50% in the next twenty years – with most of that demand driven by American competitors China and India.

This convergence of economic, environmental, and national security concerns relating to energy has left the American people feeling insecure but also ready to embrace a new direction. As consumers, as stewards of the environment, and as global competitors, Americans are ready for new thinking when it comes to solving our nation's energy crisis.

The question, of course, is how. We already have many so-called "renewable" sources of energy in use. Hydro is a major source of power for the U.S. and the Pacific Northwest in particular. Solar-concentrating solar technology can provide competitively priced electricity in the West, and solar-thermal is already commonplace in Japan and other island nations. Geothermal is poised for major expansion, with significant resources in the western third of the country, while wind has tripled in use since 1998 alone. And then there is fuel cell technology, of which Connecticut is a leading developer. While not a renewable energy source per se, fuel cells enable us to use existing energy – hydrogen – in new ways without emitting the gases that contribute to global warming. Each of these technologies will play an important role in helping America reduce its dependence on foreign oil.

But I am increasingly convinced that it will be technologies produced on our farms that will ultimately *break* that dependence, spurring the market and revitalizing our farm economy on a scale that could rival what we saw with the rise of the Internet in the 1990s. I believe that government has a big role to play in making that happen.

For our farms, this effort could not come a moment too soon. In recent years, Americans have become all too aware of

the cultural and social divide growing between rural America and other parts of the country. In addition, rural America has 90% of the country's poorest counties and a poverty rate that is a shocking 14.2%. The number of farms in the United States has declined by two-thirds over the past seven decades, from a historic high of 6.8 million in 1935 to 2.2 million in 2002. And today, with crop prices already low, subsidies for everything from rice to sugar to dairy products are eroding due to increased global trade pressure.

But farms could make the difference in helping us meet our energy needs, and right now, biofuels made from grains and vegetable oils are among the most promising technologies. Biofuels already supply around 2% of the nation's light-duty vehicle fuel. As far back as 1925, Henry Ford touted ethanol – that is, sugars and starches derived from various crops – as the fuels of the future, but today ethanol is mostly used as an additive to make gasoline burn more efficiently, the consequence of federal requirements in the 1990s to create cleaner-burning fuel. Biodiesel, on the other hand, is a cleaner version of diesel fuel, a mixture of regular diesel and various forms of refined vegetable oil or animal fats.

Both technologies have their limits. Most biodiesel fuels are still about 80% diesel, which contributes significantly to smog. And ethanol poses several challenges. For one, it requires a lot of energy to produce. In addition, we will max out our capacity to grow ethanol crops by 2015; ethanol already uses 14% of the country's corn production.

There is also the issue of providing these new fuel technologies to consumers. For instance, there are six million so-called "flex fuel" vehicles on the road that can either run on traditional gas or E85, a mixture of 85% grain ethanol and 15% conventional gasoline. But most people have no idea their car can even use flex-fuel. And of the 170,000 filling stations in the United States, fewer than 600 are equipped to sell E85.

Despite their drawbacks, biofuels are a critical first step toward a more sustainable process that makes America energy-independent for the long-haul. And an increase in their use is inevitable, particularly if we can give consumers a choice of fuels, as countries like Brazil have. Only three years ago, flex-fuel cars made up about 6% of the Brazilian-made car market; as of December, almost three-quarters of cars sold in Brazil came with flex-fuel engines, with many of the 1.3 million flex-fuel cars on the road there built by U.S. automakers in their overseas facilities.

But if America wants to catch up to Brazil, we will have to produce biofuels from a range of feedstocks other than corn, from which over 90% of ethanol is made today. Advanced biofuels made from cellulose, which is found in all plant matter, could change all that. By using advanced enzyme technology to break down agricultural waste, we could produce ethanol from everything from cornstalks to tree bark to prairie grasses.

Ideally, we will be creating these cellulosic biofuels in what are known as "integrated biofuel refineries" – that is, facilities which produce products like bioplastics or types of chemicals in addition to biofuel. Already, we have non-cellulosic integrated biorefineries powered by organic waste like manure and landfill materials that produce byproducts such as animal feeds and bio-based plastics in addition to ethanol. Some believe these byproducts could make our manufacturers more competitive by reducing their dependence on petrochemical materials. Regardless, bioproducts will certainly prove essential to making these cellulosic facilities profitable; it is estimated they could reduce the cost of ethanol by 13 to 20 cents per gallon, making the fuel more competitive against gasoline.

AS CONSUMERS, AS STEWARDS OF THE ENVIRONMENT, AND AS GLOBAL COMPETITORS, AMERICANS ARE READY FOR NEW THINKING WHEN IT COMES TO SOLVING OUR NATION'S ENERGY CRISIS.

As exciting as these technologies are, the barriers are clear – from the cost of these fuels to the heavy subsidies they rely on to be affordable (though less than what has been going to fossil fuels for decades). While many farmers are investing in biofuel facilities, they cannot simply switch crops without knowing that there is a viable market for their products. There are political barriers as well: insufficient allocation of resources and opposition from the various industries – from Big Oil and car manufacturers to the historic preference for corn-based ethanol over more energy-rich biofuels.

The real culprit on this issue, though, is the lack of leadership. As I noted, Americans are ready to commit to a new direction, and renewable energy technology is on the cusp. But government has been tentative when it needs to be bold.

For instance, while I appreciated the president's comments on energy during the State of the Union, he promptly

Field of Dreams: An Illinois cornfield in late summer. Rep. DeLauro believes that the American agricultural industry can help the U.S. move towards energy self-sufficiency. (Tim Boyle/ Getty Images)

introduced a budget that failed to make the necessary investments. Indeed, it sometimes appears this Administration is rigging the system in all the wrong directions – from opposing tightened CAFE fuel efficiency and utility standards to encouraging subsidies for oil and gas to withdrawing from the Kyoto treaty that would have committed the United States to reducing carbon emissions. And in the energy bill that passed Congress last summer, less than a quarter of its $85 billion went to renewable fuels; the rest went to the oil, gas, and coal industries.

Still, where a lot of my colleagues see disappointment and frustration, I see opportunities. The 2002 farm bill included for the first time a section on energy. Even the energy bill provided much greater specificity with respect to how we grow our crops, approach the conversion process and fund government research. It included a credit for gas stations to install alternative fueling stations as well as, on a larger scale, production incentives and targets for renewable fuels as a percentage of all fuels produced in the United States.

Fully funding these programs has to be priority number one – and as senior Democrat on the House Agriculture Appropriations subcommittee, that is one of my top priorities. Right now, one program that helps farmers and rural small businesses purchase renewable energy systems and make energy improvements is receiving less than half of the level of funding authorized by Congress. The same is true of the Value-Added Agricultural Product Market Development Grants, which could be used to help build more integrated biorefineries. And the Bioenergy Program, which makes available reduced-price crops for expansion of ethanol and biodiesel facilities, receives no funding at all from the president's budget. This program alone could help our farmers take those critical first steps toward using and producing renewable energies.

But getting these technologies out of the labs and onto our roads and into our homes and businesses will require incentives for production, for consumption and infrastructure. And in that regard, we need to start thinking about how we can use the power of the Federal government in creative ways. The government is one of the world's biggest purchasers of vehicles and the country's largest energy consumer. The Navy is already using B20 biodiesel in all its domestic non-tactical vehicles. Why shouldn't we mandate that all government vehicles be flex-fuel?

Next year's reauthorization of the Farm Bill will provide an opportunity to increase substantially the funding and focus on these issues and address everything from low crop prices for energy crop feedstocks to WTO pressures and climate change. The fact is that all of America will benefit from this commitment – from our businesses and our families to our farms and our manufacturing base. Indeed, I believe developing these technologies in a focused, comprehensive way will not only restore the competitiveness of rural America and expand state and local productivity, investment, and opportunity; it also has the potential to revitalize our manufacturing sector in the twenty-first century and restore American competitiveness across the globe.

In so many ways, energy *is* the most important challenge facing America in the twenty-first century, impacting everything from the public health and the environment to our national security and our economy. And whether we are scientists, economists, or simply concerned citizens, we all have a role to play in making this transition possible and harnessing this potential. It will include collaborations and partnerships, but it will also involve making the case to colleagues – to lawmakers and stakeholders – that these technologies are not fantasy but very real and very much in our sights. An energy-independent America is what we all want, and the time has come to work together to make it happen.

Extremes in the Mainstream

Is Political Polarization Creating a Mistrust of Institutions?

By Brad Hargreaves

Brad Hargreaves is a sophomore Biology major in Trumbull College.

As the television ratings campaign heated up in the spring of 2001, The Fox Network took a chance on the skepticism of the American people. "Conspiracy Theory: Did We Land on the Moon?" aired on February 15 of that year and continues to resonate today. The success of this program isn't surprising if you believe the polls indicating that roughly 10% of Americans believe the moon landing was faked.[1] Despite NASA's halfhearted efforts to dispel this misguided myth, the "moon landing hoax" hypothesis has only grown in popularity in recent years. Skepticism, however, isn't limited to scientific institutions. Increasingly, some Americans doubt the mainstream theory of the cause of the September 11 attacks – radical Islamic groups – in favor of conspiracy theories involving the American government. Can the movement of extreme anti-institutional beliefs into the mainstream be attributed to a political cause?

The expansion of modern conservatism is certainly a possible contributor. After all, it was Rupert Murdoch's Fox network which aired "Conspiracy Theory." In many ways, the current American conservative movement would like nothing better than to see the credibility of bloated government bureaucracies and scientific institutions decreased. It must be noted, however, that the composition of the right-wing anti-government movement is quite different from what it was twenty years ago. Far from the white supremacist cult in northern Idaho or the separatist militia in the hills of Texas, the movement is increasingly reaching previously mainstream and liberal groups.

For example, Dr. Douglas Jackson, a libertarian doctor in Florida and a proponent of the gold standard, founded his online e-currency backed by gold reserves in London and Dubai. Skeptical of the American government's right to issue fiat currency, he established the E-Gold Corporation on the Caribbean island of Nevis in 1996.[2] Of course, Jackson's system never replaced the dollar, and E-gold's refusal to release purchase records to government investigators has made the e-currency a haven for money launderers, scammers, and pornographers. On the other side of the right-wing coin, the anti-government Straightedge movement was launched by supporters of underground rock bands in the early 1990s. Surprisingly, the movement is often associated with personal conservatism – abstinence from sex, alcohol, and drugs – as well as ecoterrorism and gang activity. Despite its odd combination of practices, the Straightedge movement has had considerable success spreading into white, middle-class suburban communities and starting a new form of conservative anti-government action.

Can the recent wave of right-wing opposition to American institutions be at fault for the upswing in skepticism? While it may contribute, there is certainly more to the story. After all, the majority of the "9/11 revisionists" are from the far left side of the political spectrum. Could the political left be a cause of the growing mistrust of American institutions? This isn't a difficult idea to accept, as the very idea of institutional skepticism was embodied in mid-20th century liberal movements from postmodernism to the Vietnam conflict protests. The modern American left, after all, has thrived on challenging Enlightenment and objectivist institutions such as free markets. However, Democrats hardly seem willing to sell out scientific institutions such as NASA in support of something as silly as the moon landing hoax hypothesis.

That said, perhaps we are looking in the wrong place for the cause of the American populace's mistrust of institutions. Rather than placing blame on either side of the political

spectrum, we should instead try to find a common political denominator underlying the skepticism. I believe that the mistrust of modern scientific and governmental institutions is a result of a recent spike in political polarization in America.

When I speak of "polarization," I do not mean a deepening lack of cooperation between the Republican and Democratic parties. Instead, I refer to the abandonment of the political middle, a trend which has intensified over the past twenty-five years. While the polarization of the American population reached a boiling point in the past two presidential elections, the number of ideological centrists (defined as members whose voting records are closer to the overall legislative body midpoint than the median of their own party) in the Senate dropped from twenty-six in 1982 to twelve in 1996.[3] At the same time, congressional "party unity" (defined as the percentage vote in which members voted in accordance with their party) has slowly risen over the past twenty-five years.[4] As a further example of this trend, numerous moderate congressional and senatorial candidates have been unexpectedly defeated by radical opponents in the recent elections. Races in Louisiana, Oklahoma, and Georgia (among others) have shown that the moderate southern Democrat, for example, is a dying breed.

As the population polarizes, individuals grow increasingly skeptical of moderate and centrist institutions. The "with us or against us" attitude pervades polarized societies, pitting both sides against the middle and ideologues against logic and reason. Conspiracy theories abound in such a society as right-wing and left-wing demagogues alike seek stories to stoke their bases. Inherently centrist government and scientific institutions lose support and trust as they face onslaughts from both sides of the political spectrum.

It isn't hard to find examples of ideologues from both parties ganging up on apolitical institutions. Despite evidence for global warming caused by human industrialization, conservative groups have managed to discredit researchers and the global scientific community as a whole. Rather than moving the debate to the scientifically contentious question of whether we can do anything to stop global warming, Republican leaders used the polarized political climate to increase mistrust of moderate institutions.

Unfortunately, this behavior isn't unique to the right side of the aisle. September 11 conspiracy theories, which range from the relatively mild (Bush knew about the plot before it happened) to the absurd and anti-Semitic (Ariel Sharon and Israel conducted the September 11 attacks in their entirety, informing Jews to escape the World Trade Center), aren't often explicitly endorsed by mainstream Democrats. However, the far left's political base, in a style reminiscent of Howard Dean's primary campaign, has launched an internet blitz to discredit the 9/11 Commission report and convince mainstream Americans to doubt that the attacks were conducted by Islamic terrorists associated with Al-Qaeda. Through thousands of web pages, detailed videos and blogs, the 9/11 conspiracy theorists have succeeded in breaking into the public eye, especially among immigrants and minority groups.

While skepticism is not inherently a bad thing, a widespread uninformed mistrust of government and scientific institutions is unquestionably harmful to America. As more people fall victim to polarizing demagogues, we as a society lose the ability to differentiate between moderate, unbiased sources of information and partisan propaganda. Scientifically, America is already losing ground to better trained European and East Asian scientists. The most frightening implications of this trend, however, do not relate to American scientific progress. If the citizens of the most powerful country in the world cannot differentiate between fact and fiction – between rational analysis and emotional ideology masquerading as evidence – how can we hope to elect upstanding world leaders?

Remnants of a Raid: A half-buried bus sits in front of the former Branch Davidian compound in Waco, Texas, which was stormed by the FBI in April 1993. Hargreaves feels that current strains of extremism, unlike the Branch Davidians, can more easily enter the mainstream in today's polarized political climate (Joe Raedle/Getty).

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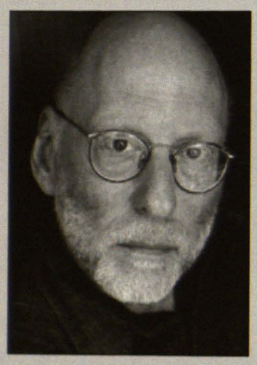
Patriotism for Intellectuals?

An Interview with Columbia Professor Todd Gitlin

Conducted by Josh Boehm



Todd Gitlin is Professor of Sociology at Columbia University. Published widely in general periodicals, online magazines, and scholarly journals, he is also the author of eleven books, most recently *The Intellectuals and the Flag*. He is on the editorial board of *Dissent* and serves as the North American editor of openDemocracy.net.

After serving as president of the Students for Democratic Society, you helped organize the first national demonstration against the Vietnam War. How has this experience shaped your views on how students can and should influence foreign policy?

I was already a political veteran at that time. I'd been involved as an undergraduate in organizing against the nuclear arms race – as grandiose as that sounds. I already had a sense, which was not diminished during the Vietnam experience, that it was a matter of moral exigency to intervene in the dynamic of political madness that seemed to me at the time to be the principal anti-principle at work in American foreign policy. It seemed like a matter of automatic obligation that students are supposed to know something, as they are in the business of learning.

Democracy itself is a learning process, so students should feel at home in trying to move policy. Moreover, the people who had the credentials to make foreign policy during the Kennedy and Johnson years were often doing such a bad enough job at it, that it became a straightforward expectation that students would try to apply some leverage.

In your new book, *The Intellectuals and the Flag*, you assert that professionals who evolved from the 1960s student movement faced a question of self-identity – still skeptical of expert authority, yet becoming experts themselves – that became a wellspring of their categorical opposition to U.S. foreign policy. Today, how pervasive is the academic view that America is not, and never can be, worth fighting for?

It's pervasive enough to be a presence. If you were to do a statistical analysis of university professors' view on this subject, I'm not exactly sure what you would find. However, you would definitely find a palpable presence of a mentality that insists that America is already a completed proposition, and not for the good. They also feel that American foreign policy is, in some way, an expression of some deep-seated national identity – and since the national identity is barbaric and corrupted, and since evidence can always be found that points to a national commitment to imperialism and other immoral policies – the highest political calling, to them, is nay-saying. It may be the case that no more than ten percent of university professors are of this disposition; it may even be five percent. But there's a tone that comes forth in anti-war projects and foreign policy orientation; there's a sense, for example, that they are always on the side of those in so-called "third world" countries who are the anti-American heroes of the moment, such as Hugo Chavez today. There's a failure of nerve, I think, to take America as a working proposition, rather than a fixed force in the universe.

You've also mentioned that when you "see young people of a leftish bent fumble for a big picture of America in the world, they seem both earnest and marooned." But is such a sweeping ideology actually desirable, or even possible, to obtain? How should young leftists recalibrate their ideological search?

In the passage you just read, I'm talking about aspiring to an intellectual picture that is comprehensive – an analytical picture is only one component of an ideology. Essentially, I think that one should be driven intellectually by an aspiration to the big picture, but should also realize that having one doesn't complete

an ideology. Having a more or less comprehensive picture may be desirable intellectually, and even strategically, but to come up with something that can rightly be called ideology, you also need to take factors like spirit, mentality, tone, and general disposition into account. A disposition, as I mentioned in my previous answer, could be whether you actually want to improve America or if you prefer to sit on the sidelines, thundering against the American ogre. So, in general, I retain the intellectual aspiration. But I think that the social sciences and the humanities have let down today's students because those sorts of social scientific aspirations which were commonplace in earlier decades have pretty much evaporated. And capital-t Theory, which has replaced the sociological ambition, doesn't seem to offer any guidance, either in principle or in strategy. That's what I mean by the word "marooned." With regard to recalibrating one's ideological search, I would emphasize the dispositional over the analytical. The guiding question should be: What promises to engage the more constructive side of American reality, and can actually nudge it in a more useful direction? If that were the question by which more activists were coming to politics, I'd be happier.

DEMOCRACY ITSELF IS A LEARNING PROCESS, SO STUDENTS SHOULD FEEL AT HOME IN TRYING TO MOVE POLICY.

In *The Intellectuals and the Flag,* you criticize rightists as well, claiming that "the neoconservatives' foreign policy is largely "hubris under a veneer of ideals." Do you feel that there was a point where neoconservatism lost its way, or was the ideology fundamentally flawed from its inception?

In foreign policy, I think that the neoconservatives were deeply naïve from the beginning. They relied on an unbridled commitment to the wedding of American power and American innocence. I think it was simply blind to the limits of power. The limits of power ought to be one of the central lessons of the study of political power – going back centuries. The main line of realism as a matter of political theory is correct; it teaches us about the recalcitrance of material and the limits of the will. To believe that the will is omnipotent is, in my opinion, fatuous and intellectually irresponsible. In George W. Bush, they found a president to whom they could sell their scheme, which was a great pity.

After 9/11, you expressed a "plain affirmation of membership" by flying an American flag outside your home. Many left-wingers of your generation, you claim, would consider this a betrayal. How has your conception of patriotism diverged from theirs?

Again, it's a question of one's disposition toward America. Do you see your political life as an exercise in the improvement of an America which is a work in progress, or do you view yourself to be imprisoned forever on the margins, lashing out at the main event happening on the inside? In a sense, do you take responsibility for all the wrongness? There's an easy withdrawal that takes place under the guise of speaking truth to power – and it's not actually speaking truth, it's shouting truth from the margins, reconciled to being nothing but a countercurrent. In short, the people I'm criticizing have decided that America is irreversibly on the wrong side of history and morality. My primary difference with them, therefore, is in my approach to politics. I think that politics are possible, and to me, that's an article of faith. As a political person, I believe that the proper reply to a grievous situation is always an activist's reply – and this reply only makes sense when it is predicated on a possibility of change. Otherwise, you're finding nobility in powerlessness. And absolute powerlessness corrupts absolutely.

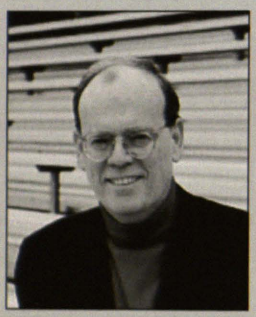
As an alternative to the political strains of universalism and relativism, you propose a "politics of limits," which is rooted in three protections: ecological, pluralist, and libertarian. How would your theory, if realized, affect America's influence in the world?

Well, America deserves some influences, but not others. There are elements of our ideological influence that need to be exalted, and there are elements of our military and political influence that need to be curbed. As a nation, we have something of a delusional belief that America can stake its claim in the world with military power. I think what is most powerful about the American ideal is ideological, and I don't mean free trade or flat taxes. I'm talking about the enlargement of rights, and – if this is not too grandiloquent – the rebirth of American passions in the 1960s. I mean the America of the civil rights movement, which became the America of the women's movement, expanding the franchise, extending rights to minorities of all kinds. I mean the America of big ideas about the collective good, including the ecological. In short, I mean the open, romantic, and luminously pluralist side of American tradition. That American idea deserves to be proselytized, and I view myself as a liberal who constantly advocates on its behalf. P

A Grand Strategy for Goliath

An Interview with Johns Hopkins Professor Michael Mandelbaum

Conducted by Kyle Black and Gregory Carlson



Michael Mandelbaum is the Christian A. Herter Professor of American Foreign Policy at The Johns Hopkins School of Advanced International Studies in Washington, D.C., and is the author of *Ideas That Conquered the World: Peace, Democracy, and Free Markets in the Twenty-First Century* and *The Case for Goliath: How America Acts as the World's Government in the 21st Century.*

Is the United States a dissolving empire? If not, to what extent is it a benign hegemon? And do you think it is likely, as some realists might argue, that other nations will form a coalition as a check against American power?

The United States, as I argue in my book *The Case for Goliath*, is not an empire because it doesn't meet the basic criterion: it doesn't govern other societies against their will. On the rare occasions when this does happen, the United States tries to get rid of its responsibilities as soon as possible. The United States is certainly not an empire by the basic definition of the term. The characterization I have chosen is not "benign hegemon" – though I suppose that is certainly acceptable – as I've gone further to argue that the United States is the world's de facto government because it provides some, but not all, of the services to the international system that governments provide within countries, particularly in security and economics.

Furthermore, I think that waiting for the counter-hegemonic coalition to form, as the realists do, is like waiting for Godot. It hasn't happened yet, and it isn't going to happen, because unlike the great powers against which coalitions have historically formed, the United States doesn't threaten other countries – and other countries know that. While they complain a lot about the United States, I think that the absence of a countervailing coalition fifteen years after the end of the Soviet Union is striking and noteworthy, and suggests that something other than the familiar realist power politics is going on here.

Is the War on Terror a distraction for the United States? If so, what are the true strategic threats to American interests?

I think that there are two principal threats to American interests that the United States guards against in various ways. One threat is the end of the benign circumstances of the post-Cold War era, when the great and potentially great powers are on relatively good terms with one another. Should one or another relationship deteriorate, as, for example, between Japan and China, it would raise problems for the entire world and especially the United States. The American goal, therefore, is to maintain the level of comity that has been achieved in the wake of the Cold War, and I think that we have been trying to do this. The second great threat is nuclear proliferation, because nuclear weapons are extremely dangerous and destructive. And if a state that is resolutely opposed to the United States, Western interests, and international norms were to obtain a nuclear weapon or build a nuclear arsenal, it would be in a position to do serious damage to the international system.

This is why the United States has been so concerned – and rightly so, in my view – about North Korea and Iran. I don't regard terrorism as a strategic threat, but I have to qualify that in a number of ways. First of all, terrorists do exist, and they do threaten America. Thus, it is right for the government to be vigilant against terrorism and to conduct a global campaign against terrorism. I'm not sure, however, if it should be called a war, because a lot of it involves police action. But certainly, a robust, global anti-terrorism policy is justified. Second, the threat of terrorism could rise to a strategic level if terrorists managed to get a nuclear weapon and explode it in a city. I don't think this is likely, but there are terrorists seeking to do so, and there are a lot of nuclear weapons in the world. The third qualification is that I

Hawk or Dove? Iranian President Mahmoud Ahmadinejad delivers a speech declaring that the Islamic republic must accelerate its nuclear energy program in order to enrich uranium on an industrial scale. Iran has successfully enriched uranium to the level needed to make nuclear fuel. (AFP/Getty Images)

do think terrorism could have an adverse effect on the entire international system if it succeeded in bringing destruction to the world's means of supplying energy. For instance, if Saudi Arabian production, or a substantial fraction of it, were taken off stream for some period of time, there would be a very serious adverse effect on the global economy.

How should the United States confront Iran's bid for nuclear weapons? Are military strikes feasible? If not, how should the United States mix diplomacy with the threat of force to deter Iran?

The best hope for keeping Iran nuclear weapon free without using force is to form a broad coalition of countries that are willing and able to threaten Iran with credible, large-scale sanctions unless the Iranians give up their nuclear program. It has been difficult to form such a coalition for a variety of reasons, one of which is that serious economic sanctions would involve cutting off Iranian oil. For the world, that would be akin to cutting off its nose to spite its face, in the sense of skyrocketing oil prices that would administer a blow – perhaps at the level of the 1970s oil shocks – to the global economy. If we had a different energy policy, we would be in a better position to persuade other countries to join us in making a threat of serious economic damage to Iran. With regard to military strikes, they're certainly not desirable, especially now that the post-Iraq political atmosphere in both the United States and the world is hardly friendly to such a policy. On the other hand, as some scholars have argued, even though the United States may not be able to knock out all the Iranians' nuclear facilities in a single blow because of their dispersion and abundance, it is not necessarily true that military strikes would be useless. We know enough about the Iranian nuclear weapons program to be able to deal it a crippling blow that would surely set back their progress toward acquiring the bomb. While this is not desirable, it is possible, which I think is something worth bearing in mind.

Do you think that the Bush administration's recent nuclear deal with India will ultimately weaken the Non-Proliferation Treaty? If so, what does the future hold for non-proliferation efforts in the absence of an effective multilateral framework?

I think that the India deal, as it has been proposed, is unfortunate, because it does seem to weaken the non-proliferation regime – the series of customs, treaties, and institutions all designed to prevent the spread of nuclear weapons. What is important about this regime is not that it will persuade Iran or North Korea – they surely won't pay any attention to it – but that it creates a global norm, making it easier than it would otherwise be to rally an international coalition against potential proliferators. It is true that the United States has had as much success as it hoped in rallying support to confront Iran and North Korea, but it would have been even more difficult in the absence of the non-proliferation regime. It just isn't a good idea to weaken the NPT. Moreover, while I'm in favor of a close relationship with India, I don't think that this deal for selling nuclear technology for power generation is crucial for cementing Indo-American relations. I would prefer that we re-negotiate the deal, with the U.S. getting more in terms of Indian compliance with the non-proliferation regime. Essentially, I would look more favorably at this arrangement if it brought India more closely into the non-proliferation regime, even if India doesn't sign the NPT, and I hope that such an outcome will be possible.

In the Middle East, the Bush grand strategy hinges on wooing the hearts and minds of moderate Muslims. Recently, however, there was a great deal of American popular opposition to Dubai Ports World as it attempted to buy and operate some U.S. shipping ports. In light of this, do you feel that the American public is fully committed to Bush's strategic goals in the Middle East?

I think that the American public is committed in principle, but at the same time, I have doubts about the feasibility of promoting democracy anywhere in the short term.

Obviously, the rejection of the Dubai companies' bid to run these ports is not especially helpful, but I don't think it's going to make much difference one way or the other. This had to do specifically with September 11 and the heightened consciousness of port security that has followed. If Dubai were buying Rockefeller Center, I think this would have gone through. I think it was the specific connection of the public mind to terrorism that prevented the deal.

What role should NATO should play in the post-Cold War world? How might the United States use NATO to serve its grand strategic interests?

NATO has ceased to be anything but a political club; it's not a useful military force at this point. The American government has hoped to make NATO an instrument for collective, combined extra-European military operations. I think it would be a good thing, but I don't think the Europeans would go along with it. They don't want their forces used outside Europe, they don't want them used in Europe, and they don't have much in the way of usable force anyway.

Could you describe the feasibility of transplanting democracy? Do you believe that it can only grow on its own?

I like the image of horticulture. The U.S. can encourage democracy, but in the end democracy has to be adopted by the country itself. In one of my previous books, I use a version of the light bulb to make this point. How many psychiatrists does it take to change a light bulb? The answer is none: a light bulb has to change itself. Well, countries have to make themselves democracies, and although the U.S. can contribute along the margins, I don't think this is a task that the United States can undertake centrally.

Along with democracy, the Bush administration has promoted free markets and free trade as part of its comprehensive package for globalization. Does this aim interfere with the simultaneous pursuit of other goals like political freedom and democracy? Are there limits to how fast we can push for free markets?

As a goal, free markets and free trade are admirable and useful, and the United States ought to promote them, but it's really up to the countries in question to adopt them. Generally, they are adopting them. The free market is more popular than democracy because it looks now like the royal road to wealth. Every country wants to be wealthy, even if its leaders don't want to democratize.

What should the U.S. strategy be in the Far East? Should it play a Machiavellian role, serving as the center of a hub-and-spokes scheme, or should it encourage a multilateral framework?

Insofar as a multilateral framework is possible, that's to be encouraged. But the reason for a hubs-and-spokes arrangement is that the countries in the region don't trust each other all that much. There's been some progress towards horizontal cooperation with ASEAN and the Shanghai Cooperation Organization. And that's a start. Multilateral frameworks like NATO or the E.U. are desirable in East Asia, and it depends on the political evolution of those societies. It's going to take a while, but I don't think the United States is holding it back.

THE PRINCIPAL THREATS TO AMERICAN INTERESTS ARE THE END OF THE BENIGN CIRCUMSTANCES OF THE POST-COLD WAR ERA AND NUCLEAR PROLIFERATION.

In addition to your works on foreign policy, you have also demonstrated an interest in American sports in your book, *The Meaning of Sports: Why Americans Watch Baseball, Football, and Basketball and What They See When They Do.* What valuable lessons from team sports can we apply to grand strategy?

One of the arguments in the book is that football is an industrial sport with industrial organization, whereas basketball is the post-industrial sport: it's more horizontal; it has more spontaneous coordination, more equality. I argue that society is also moving in that direction, from football to basketball. This is certainly true of warfare, which has become less horizontal and more networked. You can certainly draw a comparison between these two sports and the transformation of war. In the chapter on football, there is an essay on why football resembles war. It's about territory, it's hierarchical, people get hurt a lot, and it's an unnatural act. You have to train people in practices that are similar to basic training. So there are certainly some affinities there. One of the questions that I raise, but don't answer, is whether, as violence becomes less and less acceptable in society, football becomes less and less popular. So far there's no sign of that.

For Country and For Yale

Academia's Role in the War of Ideas

By Evan McCormick

Evan McCormick is a Masters Candidate in International Relations at Yale University.

In a widely reported leaked memorandum of 2003, Defense Secretary Donald Rumsfeld bluntly asked his DOD colleagues: "are we capturing, killing or deterring and dissuading more terrorists every day than the madrassas and the radical clerics are recruiting, training and deploying against us?" The question cut to the core of American strategy in the War on Terror, and seemed to ring with a fated pessimism that American military action was itself no match for the decentralized, inexpensive, and seemingly endless means by which our Islamist enemies were waging war.

More encouragingly, the memo signified an official – if implicit – acknowledgment of the political warfare dimension of U.S. strategy. Absolving America of the threat posed by radical Islamic terrorism, the memo suggested, would require an effort to confront and bankrupt the political ideology of our enemies; in sum, to win the War of Ideas.

Such an abstract end does not require abstract means. The most practical way to go about achieving this goal is to discredit the enemy's most valuable idea: that terrorism against the U.S. – and the support of such terrorism – is a profitable policy. For all the opining about what socioeconomic conditions lead foreigners to take up arms against the U.S., none is quite as persuasive as the promise of personal glory or political prestige in reward for violent action and sacrifice. So long as policies of terrorism yield political success for regimes, their ability to recruit terrorists will be unaffected.

Therefore, an American victory in the current war requires a strategy of forcefully discouraging unfriendly regimes from pursuing violent policies against the United States by means of terror. America must make it clear to the average citizen by word and by deed that – to put it in Rumsfeld's terms – heeding the call of radical clerics and madrassas is a decision that is both futile and dangerous. In other words, the terrorist recruitment mechanism will cease to operate when the idea of "choosing terrorism" becomes equivalent with political suicide.

American policy thus far in the War on Terror has in this regard yielded mixed results. On one hand, the U.S. has been inconsistent in its willingness to acknowledge the role of foreign governments in supporting al-Qaeda and its various affiliates. On the other –reconstruction efforts notwithstanding – the violent downfall of the Ba'athist regime in Iraq and the Taliban government in Afghanistan serve as powerful reminders of the fate awaiting regimes who support terrorist violence against the United States. Translating military victories into a lasting peace, however, requires harnessing their political power to impress upon potential enemies the abhorrent examples of deposed regimes and their individual representatives.

Which brings us to the case of Rahmatullah Hashemi, who, after serving as spokesman for the Taliban, was admitted to Yale University as a non-degree student in 2005, and is now seeking full-time status. Hashemi's story was told in the February 26 issue of *New York Times Magazine*, eliciting vocal reactions of both opposition and sympathy. The piece – clearly written to evoke the latter – was a highly personalized account of Hashemi's journey from reluctant Taliban diplomat to an idealistic and worldly academic, in many ways similar to the average Yale freshman. Correspondingly, the outcry over his acceptance has centered on allegations of the ivory tower's penchant for diversity gone too far.

THE CONTROVERSY OVER HASHEMI'S ADMISSION TO YALE HAS LESS TO DO WITH THE UNIVERSITY'S DIVERSITY POLITICS THAN IT DOES WITH YALE'S COMMITMENT TO AN AMERICAN VICTORY IN THE WAR OF IDEAS.

It has been a lively and interesting debate, but one that excludes a more fundamental point: Yale's admission of Hashemi is regrettable because it directly undermines American efforts to secure itself from radical Islamic terrorism.

Consider the implications of the decision. As Hashemi's story becomes more widely reported and spun in various directions, the basic message to the Arab world remains clear: despite military action and political rhetoric against regimes which advocate and abet violence against the United States, the American intellectual elite is now fully willing to accept members of those regimes. Average citizens of the Muslim world, when considering the merits of radical clerics calling them forth to serve violent anti-American causes, will no doubt consider that if things go poorly, they can always aspire to an Ivy League education. Not a bad Plan B.

The decision also speaks saddening volumes about the weakness of American collective memory; a willingness to forgive and tolerate the representatives of the most radical form of Islam who made possible the horrific attacks in New York and Washington just five years ago. Those Americans who still acutely feel the sting of that attack will take this as a sign of further alienation from the status quo of higher education. Internationally, this message will resonate clearly with the majority of moderate Muslims who continue to most directly bear the costs of their radical cohorts' political successes since 9/11. The lesson will be confounding to those moderates counting on American ideological support in their political struggle against our supposed enemies.

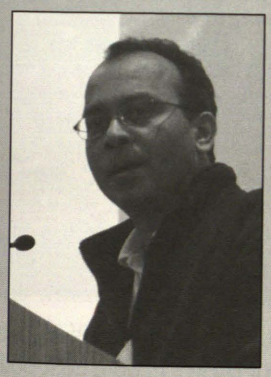
Whether or not Rahmatullah Hashemi has atoned for or deviated from his allegiance to the Taliban is an interesting question and presumably one that was given careful examination by the Yale administration while making the decision to admit. Those questions are unlikely to be fully resolved. Far more important for a University that seeks to prepare students for the "unexpected turns society will take" are the political implications of Yale's decision in the context of a war that shows no imminent signs of abating. As a self-proclaimed Global University, Yale owes careful consideration to the ideas prevailing in the world on account of its decisions, especially insofar as they affect the University's ability to carry on its academic tradition in an environment of peace. Ideas, it should be remembered, have consequences, and the admission of Rahmatullah Hashemi sends a discouraging signal about Yale's grasp of both the ideas and consequences at stake. P

Still at War? Afghan soldiers stand guard near the site of a suicide attack outside a compound for NATO-led troops in Herat. Mr. McCormick believes that America's strategy in the Middle East should center on stigmatizing extremist politics. (AFP/Getty Images)

On War and Society

An Interview with Yale Professor Vivek Sharma

Conducted by Eric Hundman



Vivek Sharma is an Assistant Professor of Political Science at Yale University.

Why did you choose to study war?

I started to read history when I was very young, and I encountered the King Arthur cycle early. Shortly after that, when I was ten, I went to boarding school in India, and shortly after that a major civil war broke out close to my school, in the region that my family is from. So all of us – all boys – would sit up at night listening to short-wave broadcasts and try to figure out what was going on. I started to read the newspaper when I was eleven or twelve – not that I understood what was going on, as we were just aping what the older boys were doing. So, I've been thinking about war and violence more or less my whole life. Both from an aesthetic standpoint – knights in shining armor, you know – but also from a practical standpoint: there was a war going on and it behooved us to pay attention.

How do you think policy makers today think about war? Should that change?

I think the current administration has a particularly naive take on the role of force in bringing about social change. It seems to me that the only explanation for current U.S. foreign policy is a desire – shared, frankly, by all liberals – that the world would be a better place if it were inhabited mostly by democratic regimes. The problem, and I think where many academics, including realists and conservatives, and the Bush administration differ is that the latter seems to have a very simplistic idea of what the relationship is between violence, regime type, and social change. Not all of us [academics] certainly, but there is a broad consensus that you cannot have a democratic state without a democratic society. Simply replacing the government isn't going to bring about a democratic society, let alone one imposed by force from the outside. At this stage, I don't know how the administration should change.

How do you think American society shapes its military forces?

It seems very clear that American patriotism, at least over the last decade or so, has been increasingly wrapped up in the Army, especially the officer corps. We consistently have been told by people in power that to criticize the policy is to criticize the solider, when they know very well that those who critique policy are not in any way critiquing the soldiers. For some reason, that idea has traction in this society – I don't think that is true in other places. I don't think the British believe that critiquing Blair has any implications for what they feel about their soldiers. I think that most Americans actually feel sorrow that young adults, and kids, and people my age are getting blown up for reasons that are not entirely clear. Most scholars of international relations view the army itself, and particularly the officers, to be some of the prime victims of this Iraq policy. The officers have a very thoughtful and, I think, much deeper understanding of what the role of violence is in political change. When I read studies coming out of West Point or the Naval War College, for example, I have nothing but the deepest respect for them. They have done deep thinking about these issues, and it is a real tragedy that policymakers have paid so little attention to them. This is particularly ironic, because Bush and many conservatives consistently insist that they are just following the advice that they are getting from the military. This seems to be patently untrue.

Do you think the nature of warfare has changed since the Gulf War? If so,how?

Keeping the Peace: A fleet of U.S. Army vehicles on patrol in Afghanistan. A critic of President Bush's Middle East policy, Vivek Sharma believes that it is impossible to implement a democratic government without a pre-existing democratic society. (John Moore/Getty Images)

In retrospect, I think we can say that the Cold War was something of an aberration in the nature of conflict, because it tended to apply a particularly simplistic lens to every conflict. For example, I think we recognize that Vietnam was a nationalist struggle in retrospect, but at the time we tended to view it through the prism of the Cold War. I think what we're witnessing now and what we will continue to witness in the next generation or so is really a continuation of the process of decolonization. If you think about it, the Middle East and Africa only experienced direct European rule for a very short period, and relatively recently. We're talking about the late 19th and early 20th centuries. Decolonization was more or less complete by the 1960s. What we're continuing to see, I think, are the deep social dislocations that Africa, Asia and particularly the Middle East are experiencing in the aftermath of either direct Western rule or simply the impact of Western influence and power. So if you think about this in the long term, I would say no, this is not new. I would say that the United States is aware of it in a different way. The violence is a long-term consequence of the fact that these societies have not found a new equilibrium, and it's not clear when or how they are going to.

What effect do you think technology has on the way we fight?

I think less than we conventionally assume. I would say the most profound transformation in warfare in the last 250 years was around the time of the French revolutionary wars. That was really the emergence of modern war, and it had absolutely nothing to do with technology. The weaponry, barring very minor improvements, was literally identical to that which had been used for a century—essentially the same musketry was being used in the early 18th century. The most important transformations in warfare over the last millennium have been organizational, and organizational changes tend to be rooted in deeper social change. For example, the shift from cavalry to infantry has traditionally been viewed as being related to gunpowder, but that is just not true. The infantry revolution has a root in the Swiss and Scottish highlands – marginal areas – and it was directly related to social issues.

So even nuclear weapons, with all the changes they have brought about, haven't fundamentally changed the nature of warfare?

There's no question in my mind that nuclear weapons played a major role in structuring the Cold War. But look at the wars the U.S. has actually fought since World War II – Korea was a stalemate, we lost Vietnam, and we won the first Gulf War but the second was a disaster. In each of these cases, it has been clear that the U.S. has been technologically superior as well as in possession of nuclear

ONE OF THE CONSISTENT PROBLEMS IN AMERICAN FOREIGN POLICY IS THAT WE REALLY DO NOT SEEM TO UNDERSTAND THE PEOPLE WE ARE FIGHTING.

weapons. Having them hasn't deterred our enemies, and hasn't helped the U.S. win. In effect, nuclear weapons have played no role in the actual wars we have fought.

What does your research on the stakes of conflict in war indicate about the conflict in Iraq?

In my work I've come to the conclusion that you can distinguish between two types of wars, at least in late medieval and early modern periods: wars fought over the rules of society, and wars fought over who rules. The conflict in Iraq has become about the rules by which society will be governed. And I think that the stakes are high – all institutions encapsulate power relations, so what is being contested right now is how those power relations will be ossified and established. These basic rules by which politics and daily life are conducted are very, very high stakes for anyone. My sense is that in Iraq you have divisions within each of the groupings, and it is still not entirely clear what role Iran is playing, but there is no question in my mind that this is a war being fought about the rules, and the stakes are of the highest order, so that is where the violence comes from.

Who is fighting whom in Iraq?

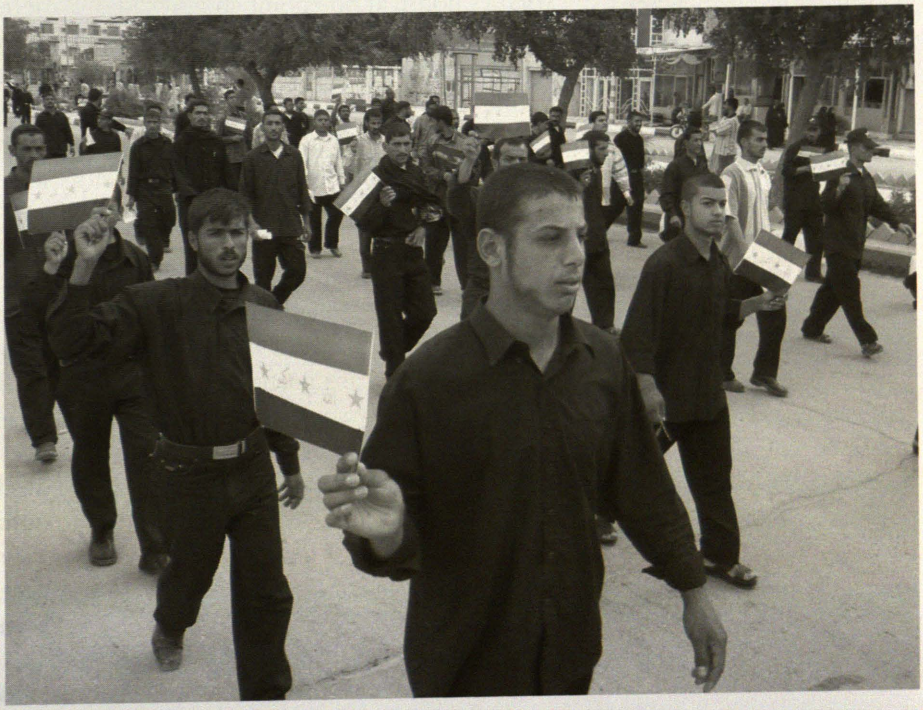
I think the presence of the U.S., at this stage, is really a secondary issue. All of the actors understand perfectly well that the day will come, sooner or later, when the U.S. withdraws. At this stage, all of the actors are preparing for the day that the U.S. will be gone, or at least stand down and become less relevant, and they will still be neighbors. This is why, I think, most of the violence is targeted against rival groups within Iraq. I do think they are trying to bleed the U.S., but at this stage the political objective is simple: withdrawal.

Do you think the United States' withdrawal will make the situation better or worse?

In the short term, if the U.S. withdraws the violence will skyrocket. In the long term, though, it would depend on whether or not the Shi'ites are able to defeat the Sunnis. What defeat means is that they are going to have to dismantle the social bases of Sunni power, and I am really not in a position to judge how much violence it is going to take to achieve that. That is, though, the definition of victory for the Shi'ites. They're going to have to do what Saddam was trying to do to them – they're going to have to destroy a community structure. I believe the presence of the U.S. at this stage is irrelevant to the long-term outcome of the war. Especially because once we withdraw its hard to see how any outside force can stabilize it, for unless the Iranians walk in and just take over, violence will continue.

Given your emphasis on the role of culture and institutions in security, how do you feel about Mr. Hashemi's presence at Yale?

From our perspective, it seems to me that one of the consistent problems in American foreign policy – this goes back to Korea, Vietnam, and Iraq – is that we really do not seem to understand the people we are fighting. We really need to have a deep understanding of the societies that we are in conflict with, now more than ever; I don't know why this is not self-evident. So having people like Hashemi around is a very good resource for those of us who study war. I recognize that it makes a lot of people queasy, and understandably so. As long as he is willing to play by the rules, though, I think we have everything to gain by having him here. P

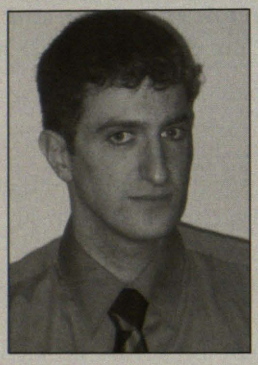


Moktada's Loyalists: A group of Iraqi Shiites, followers of radical cleric Moktada al-Sadr, march down the streets of Najaf in commemoration of the Prophet Muhammad's birth. Sharma feels that rival groups within Iraq are already preparing for a U.S. withdrawal, as evidenced by the high levels of violence between them. (Qassem Zem/Getty)

Science in Security Policy

An Interview with CDI Fellow Haninah Levine

Conducted by Eric Hundman



Haninah Levine, a graduate of Yale College, is currently a Science Fellow at the Center for Defense Information in Washington, D.C.

You were a physics major at Yale – what made you decide to pursue security and defense policy in your career?

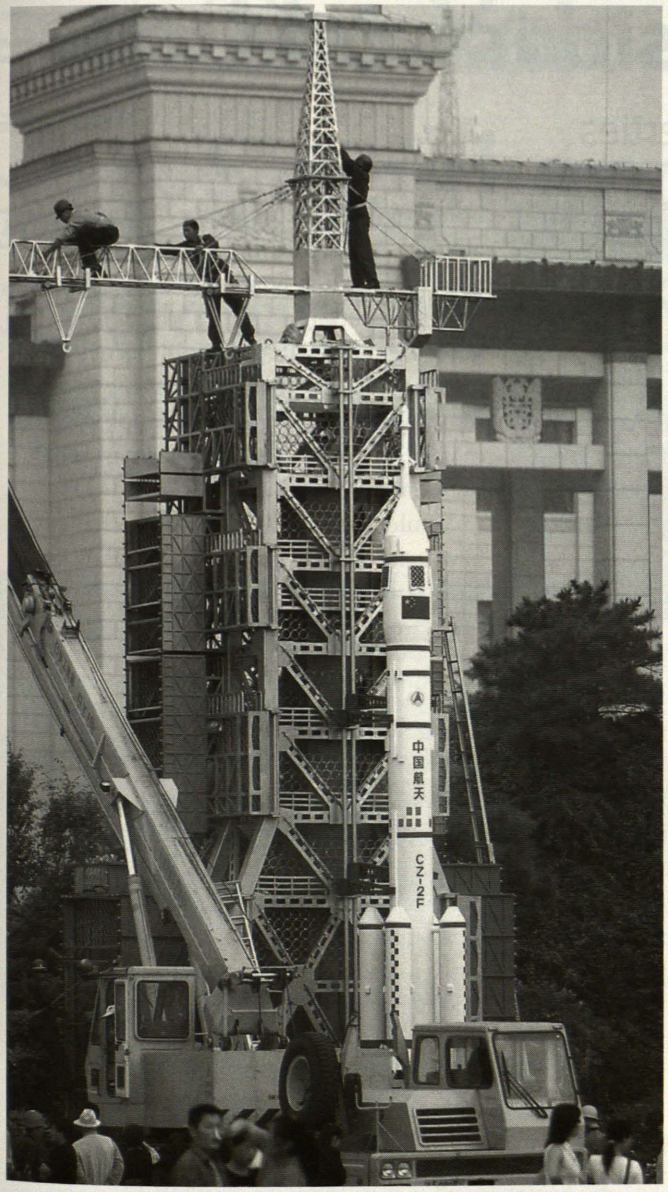
Well, I always loved physics and I still do; physics and I sort of had an emotional breakup. It just wasn't the right relationship for me. I knew I didn't want to spend my life in a lab and, in part because of my Israeli background, politics and security have always been second nature to me. I didn't take much political science at Yale, but it was always something I was reading about and thinking about. I found the Center for Defense Information, where I work now, through a typical random experience. I was at a friend's house at one point and picked up her father's magazine, *Technology Review*, and started reading a really interesting article on the Patriot missile program. I checked out some citations and saw CDI listed. The timing actually worked out very well, because I think in the policy research world there is a slowly dawning realization that scientists are particularly great to have as analysts. When dealing with contractors, especially, and other technical folks, scientists are particularly good at understanding complicated technical issues and can then effectively communicate them to a lay person.

How much do you use science in your job now?

Well, I think I use little chunks of science a lot and big chunks of science relatively rarely. I work with a lot of people who have backgrounds as science or defense journalists – people who are very, very smart and knowledgeable, but who often have questions about the specifics of a particular technical issue. Say they want to know more about a specific satellite system. I can then go and say, well the satellite is this big, so its optics can only have these particular characteristics, and it probably has this particular orbit. Then I can take it further and guess at what it's for, if it's not known. Take resolution, for example – if we can figure out that the resolution of a particular satellite is 5 meters, we know it probably isn't a spy satellite. A less technical example would be a piece I wrote this winter on improvised explosive devices (IEDs) in Iraq. They're called "homemade bombs," though this isn't always the case. In any case, they are improvised and they have become the top killer of U.S. troops in the past couple years. The defense department has spent a lot of technology on various technologies to control this problem, so I sat down and starting thinking about what it would mean to spend a lot of money on this. The advantage of IEDs is that they are improvised and can change rapidly. Now, this looks like natural selection – evolution. They appear very similar to influenza – a very lethal virus, but not particularly sophisticated. So it occurred to me that a Manhattan Project against IEDs, as has been proposed, may not be the best way to address that. We need flexible response mechanisms, like we have to deal with flu outbreaks. This is one great thing about a Yale education – it teaches us to draw connections between very different fields and hopefully find something useful that way.

What do you think is the most important but underreported defense or security issue in the U.S. today?

One of the most important – which has actually been getting more coverage lately – is the issue of American education in sci-



Upward Ambitions: Workers set up a model of China's *Long March* rocket on Tiananmen Square in Beijing. In addition to its military and nationalist benefits, China's space program will also help the economy by attracting high tech investment, according to Mr. Levine. (STR/AFP/Getty Images)

ence. The U.S. is really lagging when it comes to scientific education, and the National Academy of Sciences recently warned that shortcomings in the American educational system were becoming a threat to our national security. Another underappreciated fact about defense and security policy is actually that it is not about science, in the ultimate analysis – it is about people. Despite what I said above, science does have a privileged place in policy. Whether it is damage estimates in the Cold War, or other similarly important figures, such "scientific" conclusions can be overstated – problems can arise when people try to prove a point using science. One of the most important things I read at Yale was an essay by Max Weber, "Science as a Vocation." He was actually talking mostly about social science, but he reminds his readers that science is completely different from policy making. Scientists can answer questions and offer options, but the policy maker is responsible for determining goals, weighing costs, setting priorities, etc. There is a particular place for science in policy making, but the line seems to have blurred recently.

How do you think China intends to use its new space program, and in particular, the human component of it?

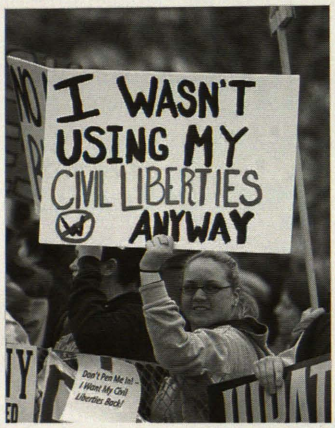
You need to start by asking what "useful" means, in this case. The first thing that China says – and I see no reason to doubt it – is the issue of national pride. There seems to be this perception of a manned space "club," which China very much wants to be a part of. Joining this club means China is, in some sense, a superpower – the only other two countries with their own human space flight programs are the U.S. and Russia. Nationalism is an incredibly important part of China's governmental strategy for maintaining power. Also, China's space program may help them break into high technology fields – along with other Asian countries like Japan or South Korea – in addition to selling launches and joining the space market. It's all about advertising their strengths. For example, if a corporation is deciding where to place a high-technology plant – China vs. Japan, say – then once China has conducted a manned space launch, perceptions of their technological capability will be higher. A manned program in particular also helps prove their launch capabilities to the world. The $64,000 question is what the military implications of the space program are. The indirect ones are obvious: national pride, for example, has a huge military value. The manned program on its own is not of enormous military value, as the USSR and U.S. realized quickly during the Cold War, but the launch capabilities, of course, do have military implications for surveillance, and so forth.

What advice for nontraditional science majors at Yale?

I don't want to give too much advice because I got to where I am by the sort of typical, accidental, one-thing-leads-to-another route. For someone interested in going into policy, though, I will say this. It helps to know policy – you don't necessarily need to have read Aristotle, but you need to understand the issues, and the most important thing is to be able to write well. Conveying your ideas clearly and intelligently, and especially being able to communicate technical ideas to non-technical people, are skills that will make a career.

Cautious Concessions

The Risks to Holding Firm on Civil Liberties



Nearly five years after the World Trade Center attacks of 2001, America is still fumbling to regain its balance on civil liberties. Debates about wiretapping, enemy detainees, and the Patriot Act have swirled throughout the public consciousness, leaving us to question whether we can trust the executive branch to respect fundamental freedoms if we allow it the expanded power it wants. The irreducible tension between liberty and security, intensified during periods of crisis, is a proven Achilles' heel of liberal republics. But haven't we survived this before? After all, our most notable encroachments on civil liberty – Lincoln's suspension of habeas corpus, FDR's Japanese internment camps, the excesses of McCarthyism – dissipated along with the conflicts that spurred them.

While crafting the Constitution, America's founders had the tension between liberty and security squarely in mind. Many of them, grounded in a classical curriculum, looked to ancient Rome for precedents. They were surely appalled by the way republican Rome, a well-established power in its own right, gradually and lawfully submitted itself to the rule of a single man – Augustus – who convinced the republic to cede him power in the name of liberty through security. Failing to appreciate the sensitive tradeoff between the two, the Senate granted Augustus absolute control of the most important Roman legions, thereby sacrificing its long-term political integrity at the feet of its short-term fears.

That kind of transformation was Jefferson's and Madison's greatest concern. They were suspicious of centralized power – necessary though they knew it to be – and noted the fragility of republican governments, any of which, by their very nature, must tiptoe along the same slippery slope that Rome tumbled down. But America's federalists, most notably Hamilton and Washington, felt that Jefferson's yeoman ideal reflected a certain naiveté with regard to power politics. They saw live combat during the Revolutionary War, learning firsthand how our decentralized, ineffective government nearly crippled the nascent American experiment by failing to support its troops.

Hamilton fleshed out his sentiments in *Federalist #23*, claiming that "the circumstances that endanger the safety of nations are infinite; and for this reason no constitutional shackles can wisely be imposed on the power to which the care of it is committed." Americans, bounded by two great oceans, have only occasionally felt the import of this admonition. It was the first Red Scare, following the Russian Revolution of 1917, which first convinced America that a civil liberties lobby (the ACLU) could be a valuable tool for reminding and sometimes helping jittery majorities not to repeat the Roman Senate's impulsive faux-pas.

While America's post-9/11 challenges have heightened external sensitivities in a similar way, they seem to pose a new, more serious threat to our balance of civil liberties and national security. Congress and the courts must be able to review and challenge executive decisions; yet the executive must be able to fight in the shadows, on par with the adversary. We cannot possibly project how long we will need to grant "wartime" latitude for counterterrorism measures, raising a serious dilemma if, for example, we also want to restrict due process because of sensitive evidence. And unlike the Cold War, we don't have the tools of deterrence and diplomacy at our disposal. Outside of direct efforts to prevent or intervene, we have no effective means for heading off terror attacks. The Bush Administration's democratization initiative for wiping out the root cause of terrorism, if it works at all, will probably take decades.

In this new landscape, civil libertarians have been holding fast on many points, and their Jeffersonian integrity is admirable. The result of their victories, however, could be counterproductive. If terrorists were to detonate – or threaten to detonate – a nuclear device in America, it is conceivable that many Americans would demand arbitrary and despotic measures to prevent future occurences, rendering many constitutional rights moot. Against our historical instincts, threrefore, we shouldn't be paralyzed by "slippery slope" concerns, instead remaining open-minded toward *some* necessary, incremental tradeoffs.

These are very difficult – and as the founders saw, very risky – decisions to make, and Congress should always take a hard look at whether the loss to liberty justifies the gain in security. But in the long view, we must realize that while an uncompromising civil-libertarian stance seems best at keeping a would-be Augustus at bay, it may also increase the risk that we will have to make bigger compromises in the future.

Josh Boehm
Editor-in-Chief

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